



Sanctions Exclusion Endorsement

Policyholder: Longmeadow Associates LLC

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

The following exclusion is added to the policy to which it is attached and supersedes any existing sanctions language in the policy, whether included in an Exclusion Section or otherwise:

SANCTIONS EXCLUSION

Notwithstanding any other terms under this policy, we shall not provide coverage nor will we make any payments or provide any service or benefit to any insured, beneficiary, or third party who may have any rights under this policy to the extent that such cover, payment, service, benefit, or any business or activity of the insured would violate any applicable trade or economic sanctions law or regulation.

The term policy may be comprised of common policy terms and conditions, the declarations, notices, schedule, coverage parts, insuring agreement, application, enrollment form, and endorsements or riders, if any, for each coverage provided. Policy may also be referred to as contract or agreement.

We may be referred to as insurer, underwriter, we, us, and our, or as otherwise defined in the policy, and shall mean the company providing the coverage.

Insured may be referred to as policyholder, named insured, covered person, additional insured or claimant, or as otherwise defined in the policy, and shall mean the party, person or entity having defined rights under the policy.

These definitions may be found in various parts of the policy and any applicable riders or endorsements.

All other terms and conditions of this policy remain unchanged.



Important Notice - In Witness Clause

In return for the payment of premium, and subject to the terms of this policy, coverage is provided as stated in this policy.

IN WITNESS WHEREOF, this Company has executed and attested these presents and, where required by law, has caused this policy to be countersigned by its duly Authorized Representative(s).

President

Corporate Secretary

QUESTIONS ABOUT YOUR INSURANCE? Your agent or broker is best equipped to provide information about your insurance. Should you require additional information or assistance in resolving a complaint, call or write to the following (please have your policy or claim number ready):

Zurich in North America
Customer Inquiry Center
1299 Zurich Way
Schaumburg, Illinois 60196-1056
1-800-382-2150 (Business Hours: 8am - 4pm [CT])
Email: info.source@zurichna.com

Insured Name: Longmeadow Associates LLC
Policy Number: MPL Q787428 - 1
Effective Date: 09/19/2025



THIS DISCLOSURE IS ATTACHED TO AND MADE PART OF YOUR POLICY.

**DISCLOSURE OF IMPORTANT INFORMATION
RELATING TO TERRORISM RISK INSURANCE ACT**

SCHEDULE*

Premium attributable to risk of loss from certified acts of terrorism for lines of insurance subject to TRIA:

\$0.00

*Any information required to complete this Schedule, if not shown above, will be shown in the Declarations.

A. Disclosure of Premium

In accordance with the federal Terrorism Risk Insurance Act ("TRIA"), as amended, we are required to provide you with a notice disclosing the portion of your premium, if any, attributable to the risk of loss from terrorist acts certified under that Act for lines subject to TRIA. That portion of premium attributable is shown in the Schedule above. The premium shown in the Schedule above is subject to adjustment upon premium audit, if applicable.

B. Disclosure of Federal Participation in Payment of Terrorism Losses

You should know that where coverage is provided by this policy for losses resulting from certified acts of terrorism, the United States Government may pay up to 80% of insured losses exceeding the statutorily established deductible paid by the insurance company providing the coverage.

C. Disclosure of \$100 Billion Cap on All Insurer and Federal Obligations

If aggregate insured losses attributable to terrorist acts certified under TRIA exceed \$100 billion in a calendar year (January 1 through December 31) and an insurer has met its deductible under the program, that insurer shall not be liable for the payment of any portion of the amount of such losses that exceeds \$100 billion, and in such case insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of Treasury.

D. Availability

As required by TRIA, we have made available to you for lines subject to TRIA coverage for losses resulting from acts of terrorism certified under TRIA with terms, amounts and limitations that do not differ materially from those for losses arising from events other than acts of terrorism.

E. Definition of Act of Terrorism under TRIA

TRIA defines "act of terrorism" as any act that is certified by the Secretary of the Treasury, in accordance with the provisions of the federal Terrorism Risk Insurance Act ("TRIA"), to be an act of terrorism. The Terrorism Risk Insurance Act provides that the Secretary of Treasury shall certify an act of terrorism:

1. To be an act of terrorism;

2. To be a violent act or an act that is dangerous to human life, property or infrastructure;
3. To have resulted in damage within the United States, or outside of the United States in the case of an air carrier (as defined in section 40102 of Title 49, United States Code) or a United States flag vessel (or a vessel based principally in the United States, on which United States income tax is paid and whose insurance coverage is subject to regulation in the United States), or the premises of a United States mission; and
4. To have been committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

No act may be certified as an act of terrorism if the act is committed as part of the course of a war declared by Congress (except for workers' compensation) or if losses resulting from the act, in the aggregate for insurance subject to TRIA, do not exceed \$5,000,000.



Disclosure Statement



It is our pleasure to present the enclosed policy to you for presentation to your customer.

INSTRUCTION TO AGENT OR BROKER

WE REQUIRE THAT YOU TRANSMIT THE ATTACHED/ENCLOSED DISCLOSURE STATEMENT TO THE CUSTOMER WITH THE POLICY.

Once again, thank you for your interest, and we look forward to meeting your needs and those of your customers.

Disclosure Statement



NOTICE OF DISCLOSURE FOR AGENT & BROKER COMPENSATION

If you want to learn more about the compensation Zurich pays agents and brokers visit:

<https://www.zurichna.com/producercompensation>

or call the following toll-free number: (866) 903-1192.

This Notice is provided on behalf of Zurich American Insurance Company
and its underwriting subsidiaries.

Zurich Select Plus

Private Company Declarations – New York



Insurance is provided by: ZURICH AMERICAN INSURANCE COMPANY
1299 Zurich Way
Schaumburg, Illinois 60196-1056

THIS POLICY PROVIDES CLAIMS MADE COVERAGE. THIS POLICY PROVIDES NO COVERAGE FOR **CLAIMS** ARISING OUT OF ANY **WRONGFUL ACTS**, WHICH TOOK PLACE PRIOR TO THE RETROACTIVE DATE, IF ANY. **CLAIMS** MUST FIRST BE MADE AGAINST THE **INSURED**S DURING THE **POLICY PERIOD**, THE AUTOMATIC EXTENDED REPORTING PERIOD OR THE OPTIONAL EXTENDED REPORTED PERIOD, IF PURCHASED. THE POLICY COVERS ONLY **CLAIMS** ACTUALLY MADE AGAINST THE **INSURED** WHILE THE POLICY REMAINS IN EFFECT AND ALL COVERAGE UNDER THE POLICY CEASES UPON **TERMINATION OF COVERAGE**, EXCEPT FOR THE AUTOMATIC EXTENDED REPORTING PERIOD, UNLESS THE **INSURED** PURCHASES THE OPTIONAL EXTENDED REPORTING PERIOD. THE AUTOMATIC EXTENDED REPORTING PERIOD IS SIXTY (60) DAYS IN LENGTH AND IS PROVIDED WITHOUT ADDITIONAL CHARGE TO THE **INSURED**. AN OPTIONAL EXTENDED REPORTING PERIOD CAN BE PURCHASED. PLEASE NOTE THAT THE COST OF THE OPTIONAL EXTENDED REPORTING PERIOD IS BASED ON RATES IN EFFECT AT THE BEGINNING OF THE POLICY PERIOD.

THE INSURER OFFERS THE FOLLOWING **EXTENDED REPORTING PERIOD** (PLEASE REFER TO SECTION I.C. OF THE NEW YORK AMENDATORY ENDORSEMENT FOR COMPLETE INFORMATION):

EXTENDED REPORTING PERIOD: 1 YEAR(S) AT NINETY-FIVE PERCENT (95%) OF THE ANNUAL PREMIUM.

THERE MAY BE POTENTIAL COVERAGE GAPS THAT ARISE UPON EXPIRATION OF THE OPTIONAL EXTENDED REPORTING PERIOD. DURING THE FIRST SEVERAL YEARS OF A CLAIMS-MADE RELATIONSHIP, CLAIMS-MADE RATES ARE COMPARATIVELY LOWER THAN OCCURRENCE RATES AND THE **INSURED** CAN EXPECT SUBSTANTIAL ANNUAL PREMIUM INCREASES, INDEPENDENT OF OVERALL RATE LEVEL INCREASES, UNTIL THE CLAIMS-MADE RELATIONSHIP REACHES MATURITY.

THE LIMITS OF LIABILITY AND ANY RETENTION(S) SHALL BE REDUCED, AND MAY BE COMPLETELY EXHAUSTED, BY AMOUNTS INCURRED AS **DEFENSE COSTS**. IN THE EVENT THE LIMITS OF LIABILITY ARE EXHAUSTED BY THE PAYMENT OF **DEFENSE COSTS**, THE INSURER WILL NOT BE LIABLE FOR THE PAYMENT OF **DEFENSE COSTS** OR FOR THE AMOUNT OF ANY JUDGMENT OR SETTLEMENT AFTER THE LIMITS OF LIABILITY HAVE BEEN EXHAUSTED. UPON WRITTEN REQUEST TO THE INSURER, THE **POLICYHOLDER** SHALL HAVE THE RIGHT TO AN ACCOUNTING OF **DEFENSE COSTS** ACTUALLY EXPENDED BY THE INSURER IN DEFENSE OF A CLAIM.

THIS POLICY MAY CONTAIN A SUBLIMIT OF LIABILITY UNDER THE MANAGEMENT AND COMPANY LIABILITY COVERAGE PART, EMPLOYMENT PRACTICES AND THIRD PARTY DISCRIMINATION LIABILITY COVERAGE PART, FIDUCIARY LIABILITY COVERAGE PART AND/OR THE CRIME COVERAGE PART. PLEASE SEE ITEM 4. OF THE DECLARATIONS OR ANY ENDORSEMENTS ATTACHED TO YOUR POLICY FOR THE APPLICABLE SUBLIMIT, IF ANY.

NOTICE: THESE POLICY FORMS AND THE APPLICABLE RATES ARE EXEMPT FROM THE FILING REQUIREMENTS OF THE NEW YORK STATE INSURANCE LAW AND REGULATIONS. HOWEVER, THE FORMS AND RATES MUST MEET THE MINIMUM STANDARDS OF THE NEW YORK INSURANCE LAW AND REGULATIONS.

Policy Number: MPL Q787428 - 1

Item 1. **Policyholder** and Mailing Address: Longmeadow Associates LLC
565 Taxter Road #105
Elmsford, NY 10523-2377

Item 2. **Policy Period:** From: 12:01 A.M. on 09/19/2025 To: 12:01 A.M. on 08/01/2026
Local time at the address shown in Item 1.

Item 3. **Extended Reporting Period:** 1. Additional Premium: 95% of Annual Premium
2. Additional Period: 1 Year(s)

Item 4. Combined Total Limit of Liability: \$2,000,000 All **Loss** under all Coverage Parts, combined, other than the Crime Coverage Part.

Item 5. Additional Limit of Liability for **Defense Costs:** \$1,000,000

Item 6. Coverage Summary

Coverage Part	Purchased/ Granted	Coverage Part Aggregate Limit of Liability	Pending or Prior Date	Subject to Shared Limit of Liability
Management and Company Liability	☒ Yes ☐ No	\$1,000,000	09/19/2025	☐ Yes ☒ No
Employment Practices and Third Party Liability	☐ Yes ☒ No	N/A	N/A	☐ Yes ☐ No
Fiduciary Liability	☐ Yes ☒ No	N/A	N/A	☐ Yes ☐ No

Coverage Part	Purchased/ Granted	Occurrence Limit of Liability	Pending or Prior Date	Subject to Shared Limit of Liability
Crime	☐ Yes ☒ No	N/A	N/A	N/A

Item 7. Coverage Schedule

Management and Company Liability			
Coverage Clauses	Limit of Liability	Retention	Coinsurance
A. Insured Person Liability	\$1,000,000	\$5,000 / 50,000	A. 0.5% of the first \$1,000,000 of Loss per Insured Person .
B. Company Reimbursement		\$10,000	
C. Company Liability		\$10,000	
D. Retired Independent Directors Liability	\$50,000 Each Retired Independent Director \$250,000 Aggregate Limit of Liability for All Retired Independent Directors	\$0	N/A
Securityholder Derivative Demand Investigative Costs	\$250,000 Sublimit of Liability	\$0	N/A
Additional Limits of Liability			
Additional Limit of Liability for Insuring Clause A	\$1,000,000	N/A	N/A

Item 8. Policy Premium: \$4,917.00

Item 9. Endorsements Effective at Inception: See attached Schedule

Item 10. Notice to Underwriter:

A. Address for Notice of **Claim, Potential Claim** or **Coverage Event**:

Attn: Zurich North America - Management Solutions Claims
P.O. Box 968041
Schaumburg, IL 60196-8041

Fax: (866) 255-2962
E-mail: msgclms@zurichna.com

B. Address for Notice of loss or situation under Crime Coverage Part:

Attn: Zurich North America - Fidelity and Crime Bonds Claims
P.O. Box 968036
Schaumburg, IL 60196

Fax: (877) 812-5754
E-mail: reportsfclaims@zurichna.com





Form and Endorsement Schedule

Zurich Select Plus Insurance Policy

Policy No.	Eff. Date of Pol.	Exp. Date of Pol.	Eff. Date of End.	Add'l Prem.	Return Prem.
MPL Q787428 - 1	09/19/2025	08/01/2026	09/19/2025	---	---

Policyholder: Longmeadow Associates LLC

Form Name	Form Number	Edition Date	Endorsement No.
Sanctions Exclusion Endorsement	U-GU-1191-A CW	(03/15)	
Important Notice - In Witness Clause	U-GU-319-F	(01/09)	
Disclosure of Important Information Relating to Terrorism Risk Insurance Act	U-GU-630-E CW	(01/20)	
Disclosure Statement	U-GU-873-A CW	(06/11)	
Notice of Disclosure For Agent & Broker Compensation	U-GU-874-B CW	(02/23)	
Zurich Select Plus Private Company Declarations – New York	U-PCNPP-D-1002GP NY	(05/21)	
Zurich Select Plus - General Terms and Conditions	U-PCNPP-1000GB CW	(05/20)	
Zurich Select Plus - Private Management and Company Liability Coverage Part	U-PCNPP-1200DP CW	(05/20)	
Cap on Losses From Certified Acts of Terrorism	U-GU-767-B CW	(01/15)	
New York Amendatory Endorsement	U-PCNPP-2000MB NY	(05/21)	
Breach of Contract Exclusion Amended (With Securities Claim Carveback)	U-PCNPP-3019DB CW	(05/20)	
Books and Records Coverage Added	U-PCNPP-3106DB CW	(03/20)	
Extended Reporting Period Amended (30 or 90 Days) - New York	U-PCNPP-3134GB NY	(03/20)	
Major Shareholder Exclusion Added (Percentage)	U-PCNPP-3153DP CW	(03/20)	
Professional Liability Exclusion Amended (Absolute Wording)	U-PCNPP-3178DB CW	(05/20)	
Professional Liability Exclusion Amended (Include Non-Indemnifiable Loss Carveback)	U-PCNPP-3184DP CW	(05/20)	
State Amendatory Inconsistency Added	U-PCNPP-3201GB CW	(03/20)	
Employed Lawyers Sublimit Added	U-PCNPP-3256DB CW	(03/20)	
Inquiry Costs Coverage Added	U-PCNPP-3269DP CW	(03/20)	
Severability Amended (Policyholder Limited to CEO and CFO Knowledge)	U-PCNPP-3315GB CW	(03/20)	
Crisis Management Coverage Added	U-PCNPP-3333MB CW	(05/20)	
Wholesale Broker Enhancement Amendatory Endorsement	U-PCNPP-3365MP NY	(06/21)	

Cyber Exclusion Added	U-PCNPP-3375MB CW	(07/21)	
New York Free Trade Zone Notice - Class 1 and 2 Risks	U-GU-1029-C NY	(03/24)	



Zurich Select Plus

General Terms and Conditions



In consideration of payment of the premium and in reliance upon the statements made in the **Application**, the Insurer and the **Insureds** agree as follows:

I. TERMS AND CONDITIONS

This policy is comprised of these General Terms and Conditions, the Declarations, various Coverage Parts and endorsements, if applicable, and the **Application**. A Coverage Part is included within this policy only if that Coverage Part is included in the Coverage Summary and the Coverage Schedule of the Declarations.

Except for these General Terms and Conditions, the terms and conditions of each Coverage Part apply only to that Coverage Part and shall not apply to any other Coverage Part. Any term defined or referenced in the General Terms and Conditions but also defined in a Coverage Part shall, for purposes of coverage under that Coverage Part, have the meaning set forth in that Coverage Part.

II. GENERAL DEFINITIONS

When used in this policy, the following terms, whether in the singular or plural, are defined as follows:

A. **Application** means:

1. all materials and information, including all signed applications and any materials attached thereto or incorporated therein, submitted by or on behalf of the **Insureds** to the Insurer in connection with the underwriting of this policy or any policy issued by the Insurer of which this policy is a renewal or replacement; and
2. all publicly available documents prepared by the **Company** during the twelve (12) months preceding the inception of this policy which are reviewed by the Insurer in connection with the underwriting of this policy or any policy issued by the Insurer of which this policy is a renewal or replacement.

The **Application** is deemed attached to and incorporated into this policy.

B. **Claim** means the definition set forth in the applicable Coverage Part.

C. **Company** means, collectively, the **Policyholder** and its **Subsidiaries**, including any such organization as a debtor in possession under United States bankruptcy law or an equivalent status under the law of any other country.

D. **Coverage Event** means, with respect to a **Non-Liability Coverage Part**, the event or loss which must occur or be sustained or discovered in order to invoke coverage under such Coverage Part.

E. **Defense Costs** means reasonable costs, charges, fees (including but not limited to attorney's fees and expert's fees) and expenses (other than regular or overtime wages, salaries or fees of the directors, officers or employees of the **Company**) incurred by the **Insureds** (i) in defending or investigating **Claims**, including the premium for appeal, attachment or similar bonds, provided the Insurer shall have no obligation to apply for or furnish such bonds, or (ii) at the Insurer's request to assist the Insurer in investigating a **Claim**.

F. **Domestic Partner** means any natural person qualifying as a domestic partner under the provisions of any applicable federal, state or local law or under the provisions of any formal program established by the **Company**.

G. **Employee** means the definition set forth in the applicable Coverage Part.

H. **Employment Practices Wrongful Act** means any error, misstatement, misleading statement, act, omission, neglect, or breach of duty which results in a **Claim** brought and maintained by or on behalf of any past, present, future or prospective **Employee(s)** of the **Company** against any **Insured** alleging:

1. breach of any implied employment contract;
2. violation of any law or public policy concerning discrimination in employment, including violations based upon race, national origin, religion, sex, age, sexual orientation or preference, pregnancy, military status, marital

status, disability, medical leave or genetic predisposition; or

3. employment-related torts including without limitation wrongful termination; failure or refusal to hire or promote; wrongful discipline; wrongful reference, deprivation of a career opportunity, demotion or adverse change in terms, conditions or status of employment; wrongful failure to grant tenure; humiliation; retaliation for asserting a legal right; workplace harassment including through the use of social media and without limitation offensive, intimidating, coercive or unwelcome conduct, advances, contact or communications; bullying; negligent hiring, retention, supervision, training or performance evaluation; failure to adopt and/or enforce adequate employment-related workplace policies and procedures; and employment-related misrepresentation, defamation, invasion of privacy or infliction of emotional distress.

I. Environmental Event means:

1. the actual, alleged or threatened discharge, release, escape, seepage, migration or disposal of **Pollutants** into or on real or personal property, water or the atmosphere; or
2. any direction or request that the **Company** or the **Insured Persons** test for, monitor, clean up, remove, contain, treat, detoxify or neutralize **Pollutants**, or any voluntary decision to do so.

J. ERISA means the Employee Retirement Income Security Act of 1974, as amended, and any similar state or local common or statutory law, or any rules and regulations promulgated thereunder.

K. Executive Officer means with respect to any **Company** its chief executive officer, chief financial officer, in-house general counsel, and solely with respect to the Employment Practices and Third Party Liability Coverage Part, if purchased, the human resource manager, or, if a **Company** does not have one of such positions, any equivalent executive position in such **Company**.

L. Extended Reporting Period means the period of the extended coverage under the **Liability Coverage Part(s)**, as described in Item 3 of the Declarations.

M. Extradition means any formal process by which an **Insured Person** located in any country is or is sought to be surrendered to any other country for trial, or otherwise to answer any criminal accusation, for a **Wrongful Act**.

N. Financial Impairment means the status of the **Company** resulting from the appointment by any state or federal official, agency or court of any receiver, conservator, liquidator, trustee, rehabilitator or similar official to take control of, supervise, manage or liquidate the **Company**, or the **Company** becoming a debtor in possession under the United States bankruptcy law or an equivalent under the laws of any other country.

O. Independent Contractor means the definition set forth in the applicable Coverage Part.

P. Insured Persons means the definition set forth in the applicable Coverage Part.

Q. Insureds means the definition set forth in the applicable Coverage Part.

R. Interrelated Wrongful Acts means all **Wrongful Acts** that have as a common nexus any fact, circumstance, situation, event, transaction, cause or series of causally connected facts, circumstances, situations, events, transactions or causes.

S. Liability Coverage Part means any of the following: the Management and Company Liability Coverage Part, the Employment Practices and Third Party Liability Coverage Part, the Fiduciary Liability Coverage Part and Subsection I.A of the Cyber Coverage Part, if included in the Coverage Summary and the Coverage Schedule of the Declarations.

T. Loss means the definition set forth in the applicable Coverage Part.

U. Managers means any natural person who was, now is or shall become (i) a manager, member of the Board of Managers or equivalent executive of a **Company** and (ii) a general partner, managing partner or equivalent executive of a partnership or joint venture that is expressly included as a **Company** by endorsement to this policy.

V. Non-Liability Coverage Part means the Crime Coverage Part and Subsection I.B FIRST PARTY COVERAGES of the Cyber Coverage Part, if included in the Coverage Summary and the Coverage Schedule in the Declarations.

W. Plans means the definition set forth in the Fiduciary Liability Coverage Part, if purchased.

X. Policy Period means the period set forth in Item 2 of the Declarations.

Y. Policyholder means the organization designated in Item 1 of the Declarations.

- Z. **Pollutants** mean any solid, liquid, gaseous or thermal irritant or contaminant, including without limitation smoke, vapor, soot, fumes, acids, alkalis, chemicals and waste. Waste includes materials to be recycled, reconditioned or reclaimed.

AA. **Subsidiary** means:

1. any organization, other than a joint venture or partnership, in which more than fifty percent (50%) of the outstanding voting securities or voting rights representing the present right to vote for election of directors, trustees, **Managers** or equivalent executives is owned or controlled by one or more **Companies**;
2. any organization, other than a joint venture or partnership, in which one or more **Companies**, have the right, pursuant to a written contract with such organization or to the bylaws, charter, operating agreement or similar document of such organization, to elect or appoint a majority of the directors, **Managers** or equivalent executives of such organization; and
3. any foundation, charitable trust or political action committee controlled or exclusively sponsored by one or more **Companies**.

BB. **Third Party Wrongful Act** means any error, misstatement, misleading statement, act, omission, neglect, or breach of duty, other than an **Employment Practices Wrongful Act**, which results in an allegation of violation of a law or public policy concerning discrimination or harassment brought and maintained by or on behalf of any natural person (including customers, vendors, service providers and other business invitees) other than an **Insured Person**.

CC. **Wrongful Act** means the definition set forth in the applicable Coverage Part.

III. EXCLUSIONS

In addition to the various exclusions and/or coverage limitations set forth therein, under the **Liability Coverage Parts** the Insurer shall not be liable for that portion of **Loss** on account of, and shall not be obligated to defend, any **Claim** made against any **Insured**:

A. **Prior Notice**

based upon, arising out of or attributable to any **Claim** reported, or any circumstance reported and accepted, under a policy replaced by this policy or any other similar policies;

B. **Pending or Prior Litigation**

based upon, arising out of, or attributable to any written demand, suit or proceeding pending, or order, decree or judgment entered against any **Insured** on or prior to the applicable Pending or Prior Date set forth in the Coverage Summary in Item 6 of the Declarations, or the same or substantially the same **Wrongful Act**, **Interrelated Wrongful Acts**, fact, circumstance or situation underlying or alleged therein; or

C. **Virtual Currency**

based upon, arising out of, in connection with, or attributable to virtual currency of any kind, by whatever name known, whether actual or fictitious, including but not limited to digital currency or crypto currency.

IV. LIMITS OF LIABILITY, RETENTION AND SINGLE CLAIMS

A. LIMITS OF LIABILITY FOR LIABILITY COVERAGE PART

1. Combined Aggregate Limit of Liability

The amount set forth in Item 4 of the Declarations shall be the Insurer's maximum aggregate liability for all **Loss** covered under all Coverage Parts, combined, other than the Crime Coverage Part.

2. Coverage Part Aggregate Limit of Liability

The respective Aggregate Limit of Liability for each **Liability Coverage Part**, as set forth in the Coverage Summary in Item 6 of the Declarations, shall be the Insurer's maximum aggregate liability for all **Loss** on account of all **Claims** under such **Liability Coverage Part**. The Aggregate Limit of Liability for each **Liability Coverage Part** shall be part of and not in addition to the Combined Aggregate Limit of Liability as set forth in Item 4 of the Declarations.

3. Coverage Clause and Any Applicable Sublimit Limit of Liability

The respective Limit of Liability or any applicable Sublimit of Liability for each Coverage Clause listed under each **Liability Coverage Part**, as set forth in the Coverage Schedule in Item 7 of the Declarations, shall be the Insurer's maximum liability for all **Loss** on account of all **Claims** under such Coverage Clause. The Limit of Liability and any applicable Sublimit of Liability for each Coverage Clause shall be part of and not in addition to the Coverage Part Aggregate Limit of Liability as set forth in Item 6 of the Declarations.

4. Shared Liability Coverage Part Limit of Liability

If a Limit of Liability for a **Liability Coverage Part** is designated in the Coverage Summary in Item 6 of the Declarations as a shared Limit of Liability, then the Insurer's maximum aggregate liability for all **Loss** covered under all such shared **Liability Coverage Parts** combined shall be the largest of such shared Limits of Liability. Such shared Limit of Liability shall be part of and not in addition to the Combined Aggregate Limit of Liability as set forth in Item 4 of the Declarations.

5. Defense Costs Within Limit of Liability

Defense Costs are part of and not in addition to the Limits of Liability applicable to the **Liability Coverage Parts**, and the payment by the Insurer of **Defense Costs** reduces such Limits of Liability. If the applicable Limit of Liability is exhausted by payment of **Loss**, the Insurer's obligations, including without limitation its duty to defend, shall be completely fulfilled and extinguished.

6. Additional Limit of Liability for Defense Costs

If the Limit of Liability applicable to **Loss** covered under a **Liability Coverage Part** is exhausted by payments by the Insurer, then the Insurer's liability for any **Defense Costs** which are covered under such **Liability Coverage Part** and which are incurred thereafter on account of a **Claim** separate from the **Claim(s)** which exhausted such Limit of Liability shall be subject to an additional Limit of Liability in an amount set forth in Item 5 of the Declarations.

7. Additional Limit of Liability for Insuring Clause A of the Management and Company Liability Coverage Part

If the Limit of Liability set forth in Item 7 of the Declarations applicable to **Loss** covered under Insuring Clause A of the Management and Company Liability Coverage Part is exhausted by payments by the Insurer, then the Insurer's liability for **Loss** under Insuring Clause A and incurred thereafter on account of a **Claim** separate from the **Claim(s)** which exhausted such Limit of Liability shall be subject to the Additional Limit of Liability for Insuring Clause A set forth in Item 7 of the Declarations.

B. RETENTION FOR LIABILITY COVERAGE PART

1. The Insurer's liability under the **Liability Coverage Parts** with respect to **Loss** on account of each **Claim** shall apply only to that part of **Loss** which is excess of the applicable Retention set forth in the Coverage Schedule in Item 7 of the Declarations, and such Retention shall be borne by the **Insureds** uninsured and at their own risk. No Retention shall apply to **Loss** incurred by an **Insured Person** for which the **Company** is not permitted by common or statutory law to indemnify, or is not financially able to indemnify by reason of **Financial Impairment**.
2. If for any reason (including but not limited to **Financial Impairment**) the **Company** fails or refuses to advance, pay or indemnify covered **Loss** of an **Insured Person** within the applicable Retention, then the Insurer shall advance such amounts on behalf of the **Insured Person** until either (i) the **Company** has agreed to make such payments, or (ii) the Retention has been satisfied. In no event shall any such advancement by the Insurer relieve the **Company** of any duty it may have to provide advancement, payment or indemnification to any **Insured Person**.

Advancement, payment or indemnification of an **Insured Person** by the **Company**: (i) is deemed failed only if and to the extent it has been requested by an **Insured Person** in writing and has not been provided by, agreed to be provided by or acknowledged as an obligation by the **Company** within sixty (60) days of such request; and (ii) is only deemed refused if and to the extent the **Company** gives written notice of refusal to the **Insured Person**. Any payment or advancement by the Insurer within an applicable Retention shall reduce the applicable Limit of Liability.

C. LIMITS OF LIABILITY AND DEDUCTIBLE FOR NON-LIABILITY COVERAGE PART

The Insurer's maximum liability and the applicable Deductible under the **Non-Liability Coverage Part** shall be the respective Limits of Liability and Deductible or Retention amounts as set forth in the Coverage Schedule in Item 7

of the Declarations, if any. Such Limits of Liability and Deductible or Retention amounts will be applied as described in the respective **Non-Liability Coverage Part**.

D. SINGLE CLAIMS

All **Claims** under the **Liability Coverage Parts** which arise out of the same **Wrongful Act** and all **Interrelated Wrongful Acts** shall be deemed one **Claim**, and shall be deemed to be first made on the date the earliest of such **Claims** is first made against any **Insured**, regardless of whether such date is before or during the **Policy Period**.

E. SINGLE CLAIM COVERED BY MULTIPLE LIABILITY COVERAGE PARTS

If a single **Claim** (as described in Subsection IV.D above) is covered in whole or in part under more than one **Liability Coverage Part**:

1. only one Retention will be applied with respect to coverage for such **Claim** and the Insurer will decide which **Liability Coverage Part** Retention applies, except if applicable Retention amounts differ, the largest of such applicable Retentions will be applied; and
2. the remaining applicable Limits of Liability under each such **Liability Coverage Part** shall apply with respect to coverage for such **Claim** under such **Liability Coverage Part**, provided the Insurer's maximum aggregate liability for all **Loss** covered under all such **Liability Coverage Parts**, combined, on account of such **Claim** shall not exceed the largest of such remaining applicable Limits of Liability.

V. LIABILITY COVERAGE PART EXTENSIONS

A. ESTATES, LEGAL REPRESENTATIVES, SPOUSES AND DOMESTIC PARTNERS

The estates, heirs, legal representatives, assigns, spouses and **Domestic Partners** of **Insured Persons** shall be considered **Insured Persons** under the **Liability Coverage Parts** but only for a **Claim** arising solely out of their status as such and, in the case of a spouse or **Domestic Partner**, only to the extent such **Claim** seeks damages from marital community property, jointly held property or property transferred from the **Insured Person** to the spouse or **Domestic Partner**. No coverage is provided for any act or omission of an estate, heir, legal representative, assign, spouse or **Domestic Partner**.

B. EXTENDED REPORTING PERIOD

If the Insurer or **Policyholder** terminates or refuses to renew this policy other than for nonpayment of premium, the **Insureds** shall have the right, upon payment of the additional premium set forth in Item 3.1 of the Declarations, to an extension of the coverage granted by the **Liability Coverage Part(s)** for the **Extended Reporting Period** set forth in Item 3.2 of the Declarations, during which any **Claims** first made against an **Insured** shall be deemed to have been made during the **Policy Period**, but only with respect to a **Wrongful Act** taking place prior to the effective date of such termination or nonrenewal. This right of extension shall lapse unless written notice of such election, together with payment of the additional premium due, is given by the **Insureds** to the Insurer within sixty (60) days following the effective date of termination or nonrenewal.

The Limit of Liability for any **Extended Reporting Period** under the **Liability Coverage Part(s)** shall be part of and not in addition to the applicable Aggregate Limits of Liability for the **Liability Coverage Part(s)** as set forth in Items 4 and 6 of the Declarations. If more than one individual **Extended Reporting Period** is elected the Insurer's maximum aggregate liability under all such individual **Extended Reporting Periods**, combined, shall not exceed the Insurer's maximum aggregate liability for any one individual **Extended Reporting Period**.

The entire additional premium for the **Extended Reporting Period** shall be deemed fully earned at the inception of the **Extended Reporting Period**.

VI. ALLOCATION

If in any **Claim** under the **Liability Coverage Parts** the **Insureds** incur both **Loss** covered by this policy and loss not covered by this policy either because the **Claim** against the **Insureds** includes both covered and uncovered matters or because the **Claim** is made against both **Insureds** who are afforded coverage for such **Claim** and others who are not afforded coverage for such **Claim**, the **Insureds** and the Insurer shall use their best efforts to allocate such amount between covered **Loss** and uncovered loss based upon the relative legal and financial exposures of the parties to covered and uncovered matters; provided however that one hundred percent (100%) of **Defense Costs** shall be allocated to covered **Loss** if and to the extent such **Defense Costs** are incurred by covered **Insureds** and are in part covered and in part not covered by this policy solely because the **Claim** against the **Insureds** includes both covered and uncovered matters.

Nothing in this Section VI shall limit, waive or remove the rights of any **Insured** or the Insurer to assert claims for indemnity or contribution against third parties pursuant to any statutory or common law or any provision of this policy.

In any arbitration, suit or other proceeding among the Insurer and the **Insureds** or the **Company**, no presumption shall exist concerning what is a fair and proper allocation between covered **Loss** and uncovered loss.

VII. CHANGES IN EXPOSURE

A. NEW ORGANIZATIONS

1. If before or during the **Policy Period** the **Company** acquires or creates a new **Subsidiary** or acquires an entity by merger or consolidation, coverage under any **Liability Coverage Part** automatically shall apply to the new organization and its **Insureds**, provided such coverage shall apply only with respect to **Claims** for **Wrongful Acts** taking place after such acquisition or creation.
2. However, if (i) such newly acquired organization is a financial institution, healthcare related entity, has publicly traded debt or is publicly owned, (ii) the total assets of such newly acquired organization exceeds fifty percent (50%) of the total assets of the **Policyholder** as reflected in their respective most recent audited consolidated financial statements, (iii) solely with respect to the Employment Practices and Third Party Discrimination Liability Coverage Part and the Crime Coverage Part, if purchased, the total number of **Employees** of all **Companies** increases by more than fifty percent (50%) as an immediate result of such acquisition, merger or consolidation, or (iv) solely with respect to the Fiduciary Liability Coverage Part, if purchased, the total assets of all **Plans** of such newly acquired organization exceeds fifty percent (50%) of the total assets of all other **Plans** of all **Companies** as reflected in their respective most recent financial statements, then coverage under this policy or such Coverage Part as provided in subsection 1. above shall apply only if the Insurer agrees to afford such coverage pursuant to subsection 3 below.
3. The Insurer may agree to extend the coverage described in subsection 1. above to the new organization described in subsection 2 above if, within ninety (90) days after the acquisition, the **Policyholder** provides any additional information, pays any additional premium and agrees to any additional terms and conditions reasonably required by the Insurer for such extension of coverage. In such event, the Insurer shall issue an endorsement to this policy confirming such coverage extension.

B. ACQUISITION OF POLICYHOLDER

If during the **Policy Period** the **Policyholder** merges into or consolidates with another organization such that the **Policyholder** is not the surviving entity, or another organization(s) or person(s) (i) acquires securities or voting rights which result in ownership or voting control by the other organization(s) or person(s) of more than fifty percent (50%) of the outstanding securities representing the present right to vote for the election of directors, trustees or equivalent executives of the **Policyholder**, or (ii) if more than 50% of the assets of the **Policyholder** are acquired/purchased, then coverage under any **Liability Coverage Part** shall continue until the termination of this policy, unless the **Extended Reporting Period** is purchased, provided such coverage shall apply only with respect to **Claims** for **Wrongful Acts** taking place prior to such merger, consolidation or acquisition.

The right to exercise the **Extended Reporting Period** with respect to the **Liability Coverage Parts** shall lapse unless the **Policyholder** gives written notice of such exercise to the Insurer prior to expiration of the **Policy Period**, including the requested length of the **Extended Reporting Period** which shall not exceed six (6) years after such merger, consolidation or acquisition. If the **Policyholder** requests an **Extended Reporting Period** as described in Item 3.2 of the Declarations, then the additional premium for such **Extended Reporting Period** shall be as described in Item 3.1 of the Declarations. If the **Policyholder** requests another **Extended Reporting Period**, the Insurer shall then notify the **Policyholder** of the additional premium for the requested **Extended Reporting Period**. The **Policyholder** shall promptly pay such additional premium as a condition precedent to commencement of the **Extended Reporting Period**.

C. CESSATION OF SUBSIDIARIES

If before or during the **Policy Period** an organization ceases to be a **Subsidiary**, coverage with respect to such **Subsidiary** and its **Insureds** shall continue until termination of this policy or any renewal of this policy, provided such coverage shall apply (i) with respect to any **Liability Coverage Part**, only with respect to **Claims** for **Wrongful Acts** taking place prior to the date such organization ceased to be a **Subsidiary**, and (ii) with respect to any **Non-Liability Coverage Part**, only with respect to **Coverage Events** taking place prior to the date such organization ceased to be a **Subsidiary**.

D. CESSATION OF PLANS

If before or during the **Policy Period** a **Plan** is terminated, coverage for such **Plan** and its **Insureds** under the Fiduciary Liability Coverage Part, if purchased, shall continue until termination of such Coverage Part or any renewal of such Coverage Part, only with respect to **Wrongful Acts** taking place prior to such termination.

VIII. DEFENSE AND SETTLEMENT

A. LIABILITY COVERAGE PART DEFENSE AND SETTLEMENT

1. The Insurer shall have the right and duty to defend any **Claim** made against the **Insureds** which is covered by the **Liability Coverage Parts**. Coverage shall apply even if any of the allegations are groundless, false or fraudulent. The Insurer's duty to defend any **Claim** shall cease upon exhaustion of the applicable Limit of Liability.
2. Without limiting the Insurer's right to defend any **Claim**:
 - a. The **Insureds** agree not to offer to settle or to settle any **Claim**, incur any **Defense Costs**, assume any obligation, admit liability or stipulate to any judgment with respect to any **Claim** without the Insurer's written consent, which shall not be unreasonably withheld. The Insurer shall not be liable for or as a result of any offer to settle, settlement, **Defense Costs**, assumed obligation, admission or stipulated judgment to which it has not given prior consent.
 - b. The Insurer shall have the right and shall be given the opportunity to make any investigation it deems necessary and to effectively associate with the **Insureds** in the defense and settlement, including but not limited to the negotiation of a settlement, of any **Claim** that is or reasonably could be covered in whole or in part by the **Liability Coverage Parts**.
3. The Insurer may, with the consent of the **Insured**, make any settlement of any **Claim** covered under a **Liability Coverage Part** which the Insurer deems prudent. Solely with respect to the Employment Practices and Third Party Discrimination Liability Coverage Part, if purchased, if the **Insureds** consent to the first settlement opportunity which is recommended by the Insurer and which is acceptable to the claimant, (the first "Proposed Settlement") the applicable Retention Amount for all **Loss** on account of such **Claim** shall be retroactively reduced by ten percent (10%). The Insurer's obligation to reduce the applicable Retention Amount under this provision shall not apply if the Employment Practices and Third Party Discrimination Liability Coverage Part Limit of Liability is exhausted, and if the **Insured** against whom the **Claim** is made withholds consent to any settlement acceptable to the claimant and recommended by the Insurer (a "Proposed Settlement"), the Insurer's liability for all **Loss**, including **Defense Costs**, incurred by such **Insured** on account of such **Claim** shall not exceed:
 - a. the amount of the Proposed Settlement plus **Defense Costs** incurred up to the date of the **Insured's** refusal to consent to Proposed Settlement of such **Claim**; and
 - b. eighty percent (80%) of any **Loss**, including **Defense Costs**, in excess of the amount referenced in paragraph a above, incurred in connection with such **Claim**; subject in all events to the applicable Retention and Limit of Liability. The remaining twenty percent (20%) of any **Loss**, including **Defense Costs**, in excess of the amount referenced in paragraph a above will be borne by the **Insured** uninsured and at its own risk, notwithstanding anything to the contrary contained in Section VI ALLOCATION.

B. COOPERATION

With respect to all Coverage Parts, the **Insureds** agree to provide the Insurer with all information, assistance and cooperation which the Insurer reasonably requests and agree that in the event of a **Claim** or **Coverage Event**, the **Insureds** will do nothing that shall prejudice the Insurer's position or its potential or actual rights of recovery. The failure of any **Insured Person** to cooperate and provide information in accordance with this subsection shall not impair the rights of any other **Insured Person** under this policy.

IX. REPORTING AND NOTICE

A. Solely with respect to any **Liability Coverage Part**:

1. As a condition precedent to their rights under any **Liability Coverage Part**, the **Insureds** shall give to the Insurer written notice of any **Claim** made against the **Insureds** as soon as practicable after an **Executive Officer** or the office of general counsel, risk management or functionally equivalent departments, if any, first learns of such **Claim**, but in no event later than (i) ninety (90) days after expiration of the **Policy Period**, or (ii) the expiration of the **Extended Reporting Period**, if exercised.
2. If during the **Policy Period** the **Insureds** become aware of circumstances that could give rise to a **Claim**

against the **Insureds** and give written notice of such circumstances to the Insurer then any **Claims** subsequently arising from such circumstances shall be considered to have been made during the **Policy Period**. No coverage is afforded under any **Liability Coverage Part** for fees, expenses or other loss incurred in connection with such potential **Claim** prior to the time such circumstance results in a **Claim**.

3. As a condition precedent to exercising their rights under any **Liability Coverage Part**, the **Insureds** shall (i) include within any notice of **Claim** or circumstance a description of the **Claim** or circumstances, the nature of the alleged **Wrongful Act**, the nature of the alleged or potential damage, the names of actual or potential claimants, and the manner in which the **Insureds** first became aware of the **Claim** or circumstances; and (ii) give to the Insurer such information and cooperation as it may reasonably require.
4. As a condition precedent to their rights under the Management and Company Liability Coverage Part, the **Insured Persons** or the **Company** shall give the Insurer written notice of any **Corporate Manslaughter Costs** incurred by the **Insured Persons** as soon as practicable after the **Insured Person** or an **Executive Officer** first becomes aware of such **Corporate Manslaughter Costs**, but in no event later than ninety (90) days after expiration of the **Policy Period**.
5. All notices under this policy, including all required or otherwise provided supporting information, must be submitted in English. In the event any such information is not available as an original document in English, the **Insureds** shall supply, as a condition precedent to coverage, a complete copy of the original source material together with an English language translation certified by an independent expert. Any required translation costs shall be at the **Insureds'** expense.

- B. Solely with respect to any **Non-Liability Coverage Part**, as a condition precedent to their rights under such Coverage Part, the **Insureds** shall give to the Insurer written notice of any **Coverage Event** pursuant to the applicable notice provision in such **Non-Liability Coverage Part**.
- C. Except as otherwise provided in this policy, all notices under any provision of this policy shall be in writing and given by prepaid express courier, certified mail, or email. Notice to the **Insureds** may be given to the **Policyholder** at the address as shown in Item 1 of the Declarations. Notice to the Insurer shall be given to the respective address shown in Item 10 of the Declarations. Notice shall be deemed to be received upon actual receipt thereof by the addressee or in the case of courier or email, one day following the date such notice is sent, whichever is earlier, subject to proof of transmittal.

X. REPRESENTATIONS, SEVERABILITY AND NON-RESCINDABLE COVERAGES

A. REPRESENTATIONS

The **Insureds** represent and acknowledge that the statements and information contained in the **Application** are true and complete, are the basis of this policy and are to be considered as incorporated into and constituting a part of this policy. This policy is issued in reliance upon the truth and completeness of such representations.

B. SEVERABILITY

The **Application** shall be construed as a separate application for coverage by each of the **Insured Persons**. In the event the **Application** contains any misrepresentation or omission (i) made with the intent to deceive, or (ii) which materially affects either the acceptance of the risk or the hazard assumed by the Insurer under a **Liability Coverage Part**, then such **Liability Coverage Part** shall not provide coverage to:

1. any **Company** to the extent such **Company** indemnifies an **Insured Person** who knew the facts that were not truthfully disclosed in the **Application**; and
2. any **Company** and its **Subsidiaries** and **Plans** if an **Executive Officer** of such **Company** knew the facts that were not truthfully disclosed in the **Application**,

whether or not such **Executive Officer** or **Insured Person** knew the **Application** contained such misrepresentation or omission. Knowledge of one **Insured Person** shall not be imputed to any other **Insured Persons** for purposes of this Section X.

C. NON-RESCINDABLE COVERAGES

The Insurer shall not have the right to rescind or void the coverage provided under any **Liability Coverage Part** for any **Loss** incurred by **Insured Persons** which is not indemnified by the **Company**.

XI. TERRITORY AND VALUATION

Coverage under any **Liability Coverage Part** shall extend to **Wrongful Acts** taking place, **Loss** incurred, or **Claims**

made anywhere in the world, to the extent legally permitted.

All premiums, limits, retentions, **Loss** and other amounts under this policy are expressed and payable in the currency of the United States of America. If judgment is rendered, settlement is denominated or another element of **Loss** under this policy is stated in a currency other than United States dollars, payment under this policy shall be made in United States dollars at the rate of exchange on the date the final judgment is reached, the amount of the settlement is agreed upon or the other element of **Loss** is due.

XII. OTHER INSURANCE

Solely with respect to any **Liability Coverage Part**, if any **Loss** is insured under any other valid and collectible policy(ies) issued to any **Insured**, then this policy shall act as an excess insurance policy and will cover such **Loss**, subject to its limitations, conditions, provisions and other terms, only to the extent that the amount of such **Loss** is in excess of the amount of such other insurance (including any self-insured retentions thereunder) whether such other insurance is stated to be primary, contributory, excess, contingent or otherwise, unless such other insurance is written as specifically excess over this policy.

Provided however if any **Loss** is insured under any other valid and collectible personal umbrella policy issued to any **Insured Person**, then this policy shall cover such **Loss**, subject to its limitations, conditions, provisions and other terms, on a primary basis.

XIII. SUBROGATION

Solely with respect to any **Liability Coverage Part**, in the event of any payment under this policy, the Insurer shall be subrogated to the extent of such payment to all the **Insureds'** rights of recovery, including without limitation any right of recovery from the **Company** for **Loss** incurred by **Insured Persons** which is indemnifiable by the **Company**. The **Insureds** shall do everything necessary to secure and preserve such rights, including the execution of such documents necessary to enable the Insurer effectively to bring suit in the name of the **Insureds**. In any subrogation claim against the **Company** to enforce the **Insured Persons'** right of indemnification, the shareholder and board of director resolutions of the **Company** shall be deemed to provide indemnification to the fullest extent permitted by law, and the Insurer's recovery from the **Company** for such **Loss** shall not exceed the Retention applicable to the **Company** for such **Loss**. The Insurer shall not exercise its right of subrogation against an **Insured Person** with respect to payments under any **Liability Coverage Part** unless and to the extent one of the following exclusions applies to such **Insured Person**:

Liability Coverage Part

Management and Company Liability

Fiduciary Liability

Exclusions

Section IV.F

Section IV.B

XIV. ALTERATION, ASSIGNMENT AND HEADINGS

No change in, modification of or assignment of interest under this policy shall be effective except when made by a written endorsement to this policy which is issued by the Insurer.

The titles and headings to the various sections, subsections and endorsements of this policy, as well as the schedule of endorsements attached to this policy, are included solely for ease of reference and do not in any way limit, expand or otherwise affect the provisions or existence of such sections, subsections or endorsements.

XV. PAYMENT PRIORITY

If **Loss** due and owing by the Insurer under a **Liability Coverage Part** exceeds the then-remaining Limit of Liability applicable to such **Loss**, the Insurer shall pay such **Loss**, subject to the applicable Limits of Liability, in the following priority:

- A. First, the Insurer shall pay **Loss** which is incurred by **Insured Persons** and which is not indemnified by the **Company**;
- B. Second, the Insurer shall pay **Loss** which is incurred by **Insured Persons** and which is indemnified by the **Company**; and
- C. Third, the Insurer shall pay other **Loss** covered under the **Liability Coverage Parts**.

Subject to the foregoing paragraph, the Insurer shall, upon receipt of a written request from the **Policyholder**, delay

any payment of **Loss** due and owing to the **Company** until such time as the **Policyholder** designates, provided the Insurer's liability with respect to such delayed payment shall not be increased, and shall not include any interest, on account of such delay.

XVI. POLICY TERMINATION AND NONRENEWAL

This policy shall terminate at the earliest of the expiration date of the **Policy Period** shown in Item 2 of the Declarations or the effective date of cancellation, as described below.

A. CANCELLATION

1. The **Policyholder** may cancel this policy by surrender of this policy to the Insurer or by giving prior written notice to the Insurer stating when such cancellation shall take effect.
2. The Insurer may cancel this policy only for nonpayment of premium. In such event, the Insurer shall mail written notice of cancellation for nonpayment of premium to the **Policyholder**. Such notice shall state the effective date of cancellation, which shall not be less than fifteen (15) days after mailing such notice.
3. In the event of cancellation, the Insurer shall refund the unearned premium computed pro rata.
4. Notice of cancellation or nonrenewal shall be given to the **Policyholder** at the last known mailing address shown in our records.

B. NONRENEWAL

If the Insurer elects not to renew this policy, the Insurer shall mail to the **Policyholder** written notice thereof at least sixty (60) days prior to the expiration of the **Policy Period**. The Insurer's offer of renewal terms and conditions or premiums different from those in effect prior to renewal shall not constitute an election by the Insurer not to renew this policy.

C. NOTICE

The Insurer shall send all notices required under this Section XVI by certified mail to the **Policyholder** at the address in Item 1 of the Declarations, and by mail or electronic mail to the **Policyholder's** authorized agent, if any. Proof of mailing will be sufficient proof of notice.

XVII. AUTHORIZATION CLAUSE

By acceptance of this policy, the **Policyholder** agrees to act on behalf of the **Insureds** with respect to giving and receiving notices provided for in this policy, including notice of **Claim** and of termination, paying premiums, receiving any return premiums that may become due, and agreeing to endorsements. The **Insureds** agree that the **Policyholder** shall act on their behalf except for providing notice to purchase the **Extended Reporting Period**.

XVIII. BANKRUPTCY

Bankruptcy or insolvency of any **Insured** or of the estate of any **Insured** shall not relieve the Insurer of its obligations nor deprive the Insurer of its rights or defenses under this policy.

In the event a liquidation or reorganization proceeding is commenced by or against a **Company** pursuant to the United States Bankruptcy Code, as amended, or any similar foreign, state or local law, the **Company** and the **Insureds** hereby agree not to oppose or object to any efforts by the Insurer, the **Company** or any **Insured** to obtain relief from any such stay or injunction.

XIX. ALTERNATIVE DISPUTE RESOLUTION

The **Insureds** and the Insurer shall submit any dispute or controversy arising out of or relating to this policy to non-binding mediation. Unless otherwise agreed by the parties, such non-binding mediation shall be administered by the American Arbitration Association in accordance with its then-prevailing Commercial Mediation Rules.

If the dispute is not resolved in the mediation, then either party to the mediation may thereafter commence a judicial proceeding against the other party with respect to such dispute, provided that neither party may commence such a judicial proceeding prior to ninety (90) days following termination of the mediation.

The parties to the mediation shall share equally the fees and expenses of the mediator as well as other common expenses of the mediation process.

XX. RECOVERY OF LIMITS

Solely with respect to the **Liability Coverage Parts**, in the event the Insurer recovers amounts it paid under this Policy, the Insurer will reinstate the applicable Limit of Liability of this Policy to the extent of such recovery, less its costs incurred in administering and obtaining such recovery. The Insurer assumes no duty to seek a recovery of any amounts paid under this Policy. The Insurer, in its sole discretion, shall determine the amounts to be credited, if any, toward a reinstatement of the Limit of Liability.



Zurich Select Plus Private Management and Company Liability Coverage Part



I. INSURING CLAUSES

A. INSURED PERSON LIABILITY COVERAGE

The Insurer shall pay, on behalf of an **Insured Person**, **Loss** on account of a **Claim** for **Wrongful Acts** first made against the **Insured Person** during the **Policy Period** and reported pursuant to Section IX of the General Terms and Conditions, to the extent that such **Loss** has not been paid or indemnified by any **Company**. The Insurer will also pay **Loss** on account of a **Claim** as described in Subsection III.A.9, first made against the **Insured Person** during the **Policy Period** and reported pursuant to Section IX of the General Terms and Conditions.

B. COMPANY REIMBURSEMENT COVERAGE

The Insurer shall pay, on behalf of a **Company**, **Loss** on account of a **Claim** for **Wrongful Acts** first made against an **Insured Person** during the **Policy Period** and reported pursuant to Section IX of the General Terms and Conditions, to the extent the **Company** pays or indemnifies an **Insured Person** for such **Loss**.

C. COMPANY LIABILITY COVERAGE

The Insurer shall pay, on behalf of a **Company**, **Loss** on account of a **Claim** for **Wrongful Acts** first made against the **Company** during the **Policy Period** and reported pursuant to Section IX of the General Terms and Conditions.

D. RETIRED INDEPENDENT DIRECTORS LIABILITY COVERAGE

If this Insuring Clause is granted pursuant to the Declarations, the Insurer shall pay on behalf of the **Retired Independent Directors** all **Loss** on account of a **Claim** for **Wrongful Acts** first made against the **Retired Independent Directors** during the **Policy Period** and reported pursuant to Section IX of the General Terms and Conditions, to the extent that such **Loss** has not been paid or indemnified by any **Company** for such **Retired Independent Directors**. The Insurer will also pay **Loss** on account of a **Claim** as described in Subsection III.A.9. Such Limit of Liability shall be in addition to the Aggregate Limit of Liability set forth in Item 6 of the Declarations for this entire Coverage Part. Coverage under this Insuring Clause D shall apply only if (i) the **Retired Independent Director** is a **Retired Independent Director** when the **Claim** is first made, (ii) the Limit of Liability otherwise applicable to this Coverage Part is exhausted by reason of payment by the Insurer of **Loss**, and (iii) the **Claim** is first made against the **Retired Independent Directors** during the **Policy Period** and reported pursuant to Section IX of the General Terms and Conditions. Such coverage shall then be excess of all other insurance specifically excess of this policy as well as all other insurance described in Section XII of the General Terms and Conditions.

II. EXTENSIONS

A. ENVIRONMENTAL MISMANAGEMENT COVERAGE

Subject to this policy's other terms and conditions, coverage under Insuring Clauses A, B and D for **Claims** against **Insured Persons** includes coverage for any **Environmental Mismanagement Claim**.

B. OUTSIDE POSITION COVERAGE

Subject to the other terms and conditions applicable to this Coverage Part, Insuring Clause A and Insuring Clause B include coverage for **Insured Persons** while serving in an **Outside Position**. Such coverage shall be specifically excess of any indemnification and insurance available from or provided by the **Outside Entity** in which the **Insured Person** serves in the **Outside Position**. Payment by the Insurer or any affiliate of the Insurer under another policy as a result of a **Claim** against an **Insured Person** in an **Outside Position** shall reduce, by the amount of such payment, the Insurer's Limit of Liability under this policy with respect to such **Claim**.

C. SECURITYHOLDER DERIVATIVE DEMAND INVESTIGATIVE COST COVERAGE

Subject to this policy's other terms, conditions and exclusions, the Insurer shall pay on behalf of the **Company** all **Securityholder Derivative Demand Investigative Costs** which the **Company** incurs on account of any **Securityholder Derivative Demand** first made and reported against the **Company** during the **Policy Period** subject to the Sublimit of Liability and Retention set forth in Item 7 of the Declarations.

D. UK CORPORATE MANSLAUGHTER COSTS COVERAGE

Subject to this policy's other terms, conditions and exclusions, the Insurer shall pay on behalf of **Insured Persons** all **Corporate Manslaughter Costs** incurred by an **Insured Person** as result of a **Claim** first made and reported during the **Policy Period**.

Subsection V.B of the General Terms and Conditions and Subsection II.E of this Coverage Part shall not apply to **Corporate Manslaughter Costs**.

E. INDIVIDUAL INSURED PERSON EXTENDED COVERAGE

If the **Policyholder** is entitled to but does not exercise the **Extended Reporting Period**, pursuant to Section V.B of the General Terms and Conditions, any **Insured Person** shall have the right to elect an **Extended Reporting Period** for only such **Insured Person**, subject to the provisions of this policy. The extension of coverage pursuant to any such individual **Extended Reporting Period** shall apply only with respect to **Loss** which is incurred by the **Insured Person** who elected such extension of coverage and which is not indemnified by any **Company**, and shall not apply to any other coverage afforded under this policy.

This right of extension shall lapse unless written notice of such election is given by the **Insured Person** to the Insurer within thirty (30) days after the **Policyholder's** right to exercise the **Extended Reporting Period** has expired. If one or more **Insured Persons** give such written notice within such thirty (30) day period, then promptly after expiration of such thirty (30) day period the Insurer shall notify all the **Insured Persons** who elected such individual **Extended Reporting Period** of the additional premium payable by each such **Insured Person** for such extension. This extension of coverage for any such **Insured Person** is conditioned upon such **Insured Person** paying such additional premium within fifteen (15) days after being notified of the amount of the additional premium.

III. DEFINITIONS

When used in this Coverage Part, the following terms, whether in the singular or plural, are defined as follows:

A. **Claim** means:

1. a written demand against any **Insured** for monetary damages or non-monetary or injunctive relief commenced by the **Insured's** receipt of such demand, including a written demand that the **Insured** toll or waive a statute of limitations;
2. a civil proceeding against any **Insured** commenced by the service upon or other receipt of a complaint or similar pleading;
3. a criminal proceeding against any **Insured** commenced by a return of an indictment, information or similar document;
4. an administrative or regulatory proceeding against any **Insured** commenced by the filing or receipt of a notice of charges or similar document;
5. a civil, criminal, administrative or regulatory investigation of any **Insured Person** commenced by the service upon or other receipt by the **Insured Person** of a written notice, investigative order or subpoena from the investigating authority identifying by name the **Insured Person** as an individual against whom a proceeding may be commenced;
6. an official request for the **Extradition** of any **Insured Person** or the execution of a warrant for the arrest of any **Insured Person** where such execution is an element of **Extradition**;
7. an arbitration, mediation or other alternate dispute resolution proceeding against any **Insured**; or
8. a **Securityholder Derivative Demand**;
for a **Wrongful Act**, including any appeal therefrom;
9. solely with respect to Insuring Clause A and Insuring Clause D, any request, demand or subpoena by a regulatory, administrative, governmental or similar authority to interview or depose an **Insured Person**, or for the production of documents by an **Insured Person**, in his or her capacity as such.

B. **Corporate Manslaughter Costs** means reasonable and necessary fees, costs and expenses (other than regular or overtime wages, salaries, bonuses, stock options, or fees, or any other form of compensation, fees of **Insured Persons** or of the directors, officers or employees of the **Company**) consented to by the Insurer in writing and incurred by an **Insured Person** in the investigation, adjustment, defense and/or appeal of a **Claim** made against the **Company** for violation of the United Kingdom Corporate Manslaughter and Corporate Homicide Act of 2007 or similar criminal statute.

C. **Employee** means the following:

1. any natural persons in the regular service of the **Company** in the ordinary course of the **Company's** business and whom the **Company** compensates by salary, wages and/or commissions and has the right to govern and direct in the performance of such service, including any such natural persons who are leased, temporary, part-time or seasonal employees of the **Company**
2. **Independent Contractor**; and
3. volunteers of the **Company**;

provided any coverage for any such leased employees or **Independent Contractors** shall be specifically excess of any indemnification or insurance otherwise available to such leased employees or **Independent Contractors** from the applicable leasing company or any source.

D. **Environmental Mismanagement Claim** means any **Claim** based upon, arising out of or attributable to an **Environmental Event** if and to the extent such **Claim**: (i) is against an **Insured Person** for **Wrongful Acts** in connection with misrepresenting or failing to disclose information related to actual or alleged global warming or climate changes, or (ii) results in **Loss** incurred by **Insured Persons** for which the **Company** does not indemnify the **Insured Persons** either because the **Company** is neither permitted nor required to grant such indemnification or because of **Financial Impairment**.

E. **Independent Contractor** means any natural person doing work pursuant to a written contract with the **Company** who is treated under applicable law as an employee of the **Company**.

F. **Insured Person** means:

1. any one or more natural persons who were, now are or shall become a duly elected or appointed director, trustee, governor, **Manager**, officer, advisory director, advisory board member, or member of a duly constituted committee or board of the **Company** or their functional equivalent, or one or more natural persons who are assigned titles or positions which are functionally equivalent to directors or officers with respect to wholly owned foreign operations of the **Company**;
2. any one or more natural persons not described in Subsection 1 above who were, now are or shall become **Employees** (including employed lawyers solely in their capacity as an **Employee**) of the **Company**; and
3. any one or more natural persons described in Subsection 1 above while serving in an **Outside Position**;

provided that **Employees** described in Subsection 2 above shall not be considered **Insured Persons** for purposes of Subsection II.B and Exclusions A or B in Section IV of this Coverage Part.

G. **Insureds** means the **Insured Persons** and, solely with respect to Insuring Clause B and Insuring Clause C, the **Company**.

H. **Loss** means the total amount the **Insureds** become legally obligated to pay on account of **Claims** made against them for **Wrongful Acts** for which coverage applies, including, but not limited to, damages (including punitive, exemplary or multiple damages), judgments, any award of pre-judgment and post-judgment interest with respect to covered damages, settlements, **Corporate Manslaughter Costs**, **Defense Costs**, **Plaintiff Fees**, and civil money penalties assessed against an **Insured** pursuant to Section 2(g)(2)(B) of the Foreign Corrupt Practices Act, 15 U.S.C. §78dd-2(g)(2)(B) or for a violation of any federal, state, local or foreign election law if such election law violation is not knowing or willful.

Loss also includes, subject to the Sublimit of Liability as set forth in Item 7 of the Declarations, **Securityholder Derivative Demand Investigative Costs**.

The insurability of such punitive, exemplary or multiple damages and civil money penalties shall be determined under the laws of any applicable jurisdiction most favorable to the **Insureds**, including without limitation the jurisdiction in which the **Company**, the **Insured Persons**, the Insurer, this policy or such **Claim** is located.

Loss does not include any of the following:

1. any amount not indemnified by the **Company** for which the **Insureds** are absolved from payment by reason of any covenant, agreement or court order;
2. taxes, fines or penalties imposed by law, other than civil money penalties expressly referenced above in the first paragraph of this subsection III.H;
3. any amount incurred by the **Company** that represents or is substantially equivalent to an increase in the consideration paid or proposed to be paid by a **Company** in connection with its purchase of any securities or assets;
4. any amount incurred by the **Company** to comply with any injunctive or other equitable relief or any agreement to provide such relief; or
5. matters uninsurable under the law pursuant to which this policy is construed;

provided Subsections 1 through 4 above do not apply to **Defense Costs**.

I. Outside Entity means:

1. any organization chartered and operated as a not-for-profit organization, provided such organization is not a financial institution;
2. any for-profit organization, provided (i) the consolidated assets of such organization are less than the consolidated assets of the **Policyholder** or fifty million dollars (\$50,000,000), whichever is less, (ii) such organization is not a financial institution or healthcare entity, and (iii) the securities of such organization are not publicly owned or traded; or
3. any other organization specifically included as an **Outside Entity** by endorsement to this policy;

provided such organization is not included in the definition of **Company**.

J. Outside Position means the position of director, officer, manager, trustee, governor or other equivalent executive position in an **Outside Entity** held by an **Insured Person**, if service in such position is with the knowledge and consent of, at the direction or request of, or part of the duties regularly assigned to the **Insured Person** by, the **Company**.

K. Personal Injury means false arrest, wrongful detention or imprisonment, malicious prosecution, defamation including libel and slander, invasion of privacy or wrongful entry or eviction.

L. Plaintiff Fees means the plaintiff attorney's fees and/or costs that are awarded by the court in a final, non-appealable judgment.

M. Retired Independent Director means any **Insured Person** who (i) formerly served but no longer serves as a duly elected or appointed director, trustee, governor or functional equivalent executive of the **Policyholder**, (ii) never has been an officer of any **Company**, and (iii) no longer serves any **Company** or **Plan** in any insured capacity under this policy.

N. Securities Claim means a **Claim** (other than a criminal proceeding or formal administrative or regulatory proceeding) against any **Insured** for a **Wrongful Act** which in whole or in part is in connection with the purchase or sale of, or offer to purchase or sell, any securities issued by the **Company**, whether such purchase, sale or offer occurs with respect to the **Company's** issuance of securities or otherwise.

O. Securityholder Derivative Demand means any written demand, by one or more securityholder(s) of the **Company**, upon the Board of Directors or Board of Managers of such **Company**, to bring a civil proceeding in a court of law against any **Insured Person**.

P. Securityholder Derivative Demand Investigative Costs means reasonable and necessary costs, charges, fees (including but not limited to attorneys' fees and experts fees) and expenses (other than regular or overtime wages, salaries, fees or any other form of compensation of the **Insured Persons** or **Employees** of the **Company**) incurred by the **Company** (including its Board of Directors or any committee of the Board of Directors) in investigating or evaluating on behalf of the **Company** whether it is in the best interest of the **Company** to prosecute the claims alleged in a **Securityholder Derivative Demand**.

Q. Wrongful Act means:

1. any error, misstatement, misleading statement, act, omission, neglect, or breach of duty actually or allegedly

committed or attempted by any of the **Insured Persons**, individually or otherwise, in their capacity as such, or in an **Outside Position**, or with respect to Insuring Clause C, by the **Company**; or

2. any matter claimed against the **Insured Persons** solely by reason of their serving in such capacity or in an **Outside Position**.

IV. EXCLUSIONS

The Insurer shall not be liable under this Coverage Part for that portion of **Loss** on account of, and shall not be obligated to defend, any **Claim** made against any **Insured**:

A. Insured vs. Insured

brought or maintained by or on behalf of the **Company** or any **Insured Person** in any capacity, provided this exclusion shall not apply to:

1. a **Claim** that is a derivative action brought or maintained on behalf of the **Company** by one or more persons who are not **Insured Persons** if the **Claim** is brought and maintained without the solicitation or active assistance or participation of the **Company** or any **Insured Person** or if the only such solicitation, assistance or participation by the **Company** and **Insured Persons** is (i) solely pursuant to, or in compliance with, a subpoena or similar legal process, or (ii) protected pursuant to any whistleblower statute;
2. a **Claim** brought or maintained by any **Insured Person** for contribution or indemnity, if the **Claim** directly results from another **Claim** covered under this Coverage Part;
3. a **Claim** brought by an **Insured Person** who has not served as an **Insured Person** for at least two (2) years prior to the date such **Claim** is first made and who brings and maintains such **Claim** without the solicitation or active assistance or participation of the **Company** or any other **Insured Person** who is serving or has served as an **Insured Person** within such two (2) year period;
4. a **Claim** brought or maintained by or on behalf of a bankruptcy or insolvency trustee, examiner, receiver, similar official or creditors committee for such **Company**, or any assignee of such trustee, examiner, receiver, or similar official or creditors committee; or
5. a **Claim** by or on behalf of the **Company** brought and maintained in any non-common law jurisdiction outside the United States;

B. Outside Entity vs. Insured

for a **Wrongful Act** by an **Insured Person** in an **Outside Position** if such **Claim** is brought or maintained by or on behalf of the **Outside Entity** in which the **Insured Person** serves, or by or on behalf of any past, present or future director, officer, manager, governor or trustee of such entity, except:

1. a **Claim** that is a derivative action brought or maintained on behalf of such **Outside Entity** by one or more persons who are not directors, officers, managers or trustees of the **Outside Entity** if the **Claim** is brought and maintained without the solicitation or active assistance or participation of the **Company**, any **Insured Person**, the **Outside Entity** or any director, officer, manager or trustee of the **Outside Entity** or if the only such solicitation, assistance or participation by the **Company**, any **Insured Person**, the **Outside Entity** or any director, officer, manager or trustee of the **Outside Entity** is (i) solely pursuant to or in compliance with a subpoena or similar legal process, or (ii) protected pursuant to any whistleblower statute;
2. a **Claim** brought by a director, officer, manager, governor or trustee of such **Outside Entity** who has not served as such for at least two (2) years prior to the date such **Claim** is first made and who brings and maintains such **Claim** without the solicitation by, or active assistance or participation of, such **Outside Entity** or any other director, officer, manager, governor or trustee of such **Outside Entity** who is serving or has served as such within such two (2) year period;
3. a **Claim** brought or maintained by or on behalf of a bankruptcy or insolvency trustee, examiner, receiver, similar official or creditors committee for such **Outside Entity**, or any assignee of such trustee, examiner, receiver, similar official or creditors committee; or
4. a **Claim** by or on behalf of the **Outside Entity** brought and maintained in any non-common law jurisdiction outside the United States;

C. ERISA

for an actual or alleged violation of the responsibilities, obligations or duties imposed by **ERISA** or for any other

matter claimed against an **Insured** in whole or in part in their capacity as a settlor of any benefit plan or trust;

D. Bodily Injury/Property Damage

for actual or alleged bodily injury, mental anguish, emotional distress, humiliation, sickness, disease or death of any person or damage to or destruction of any tangible property, including loss of use thereof whether or not such property is damaged or destroyed; however, this exclusion shall not apply to (i) any **Claim** under Insuring Clause A (ii) any **Securities Claim** or (iii) **Corporate Manslaughter Costs**;

E. Pollution (Environmental Event)

based upon, arising out of or attributable to an actual or alleged **Environmental Event**; however, this exclusion shall not apply to any **Environmental Mismanagement Claim**;

F. Conduct

based upon, arising out of or attributable to any **Insured's**:

1. deliberate fraud;
2. criminal act or willful violation of any statute or regulation; or
3. profit or remuneration to which such **Insured** was not legally entitled;

established by a final, non-appealable adjudication adverse to such **Insured** in any underlying proceeding; however, this exclusion shall not apply to **Defense Costs**;

G. General Partner

for service by the **Insured Person** in any position or capacity, or for service by the **Company** as a general partner, in any organization other than the **Company** even if the **Company** directed or requested the **Insured Person** to serve in such other position or capacity; however, this exclusion shall not apply to service by the **Insured Person** in an **Outside Position**;

H. Securities

based upon, arising out of or attributable to (i) the actual, alleged or attempted purchase or sale, or offer or solicitation of an offer to purchase or sell, any securities, or (ii) the actual or alleged violation of any federal, state, local or common or foreign law relating to any securities; however, this exclusion shall not apply to any **Claim**:

1. based upon, arising out of or attributable to the purchase or sale, or offer or solicitation of an offer to purchase or sell, any debt or equity securities in a private-placement transaction exempt from registration under the Securities Act of 1933, as amended;
2. based upon, arising out of or attributable to the failure of the **Company** to undertake or successfully complete a public offering of securities, including any "roadshow" disclosures or other activities in connection with such an unsuccessful public offering; or
3. if prior to such purchase or sale, or offer or solicitation of an offer to purchase or sell, securities (i) the Insurer agrees in writing to delete this exclusion with respect to such purchase, sale, offer or solicitation, and (ii) the **Company** pays any additional premium and agrees to any additional terms and conditions reasonably required by the Insurer for such deletion;

I. Employment Practices or Third Party

which alleges an **Employment Practices Wrongful Act** or **Third Party Wrongful Act**;

J. Labor Liability or Violation of Law

based upon, arising out of or attributable to any actual or alleged violation of:

1. any labor or employment-related law, rule, or regulation including;
 - a. the Occupational Safety and Health Act;
 - b. the Worker Adjustment and Retraining Notification Act;

the Equal Pay Act or the Fair Labor Standards Act and any other law or rule concerning wage and hour practices, including but not limited to those regulating off-the-clock work, rest or meal periods, reimbursement of expenses, classification of employees including classification as exempt or

non-exempt, timely payment of wages, conversions, unjust enrichment, or unfair business practices; and

2. any actual or alleged violation of the responsibilities, obligations or duties imposed by any law governing workers' compensation, unemployment insurance, social security, disability benefits or similar law;

K. **Company Only**

solely with respect to Insuring Clause C:

1. **Breach of Contract**

based upon, arising out of or attributable to any actual or alleged liability of the **Company** under any written, oral or implied contract or agreement, except to the extent that the **Company** would have been liable in the absence of such contract or agreement;

2. **Personal Injury**

for **Personal Injury**;

3. **Taxes**

for taxes;

4. **Professional Services**

for the rendering or failure to render any professional services or any errors or omissions alleged with respect to the rendering or failure to render any professional services for others; however, this exclusion shall not apply to any **Securities Claim**;

5. **Anti-Trust**

based upon, arising out of or attributable to any actual or alleged violation of the Interstate Commerce Act of 1887, the Sherman Anti-Trust Act of 1890, the Clayton Act of 1914, the Robinson-Patman Act of 1936, the Celler-Kefauver Act of 1950, the Federal Trade Commission Act, all as amended, or any other foreign, federal, state, local common or statutory laws of any jurisdiction which is designed to prevent monopolistic or other anticompetitive practices, including but not limited to any form of price fixing, price discrimination, predatory pricing, restraint of trade, unfair trade practices or tortious interference with another's actual or prospective business or contractual relationships or opportunities;

6. **Infringement of Copyright, Patent, Trademark, Trade Name, Trade Dress or Service Mark**

based upon, arising out of or attributable to any actual or alleged infringement of copyright, patent, trademark, trade name, trade dress or service mark, or the actual or alleged misappropriation of ideas or trade secrets or the unauthorized disclosure of or access to confidential information; or

7. **Advertising/Product Defect**

based upon, arising out of or attributable to the actual or alleged:

- a. malfunction, defect, or failure of any goods or products manufactured, distributed, sold, installed, marketed, developed or processed by the **Company**;
- b. failure of goods, products, brands or services to conform with any statements, representations or any express or implied warranties made in advertising (including, but not limited to advertising via newspapers, magazines, journals, broadcast, radio, television, internet, social media, mailers, contests, sponsorships, endorsements and posters), promotions, marketing or labeling;
- c. incorrect, inadequate or misleading description of goods, products, brands or services in the advertising, marketing, promotions, broadcasting or labeling;
- d. failure to warn or to provide any warnings relating to any risks associated with the use of any goods, products, brands or services, whether required by statute, law, ordinance, regulation or by common law, including but not limited to California Proposition 65, or any other similar or substantially similar federal, state, or local statute; or
- e. manufacture or production of any goods, products, brands or services according to the design intended by the **Insured** which does not:

- (1) contain any defect in manufacture or production; or
- (2) have any unexpected or unintended results, consequences, outcomes or effects.

For the purpose of determining the applicability of any Exclusion set forth in this Section IV or Section III of the General Terms and Conditions, the **Wrongful Act** or knowledge of any **Insured Person** shall not be imputed to any other **Insured Person**. Only the **Wrongful Act** or knowledge of an **Executive Officer** of a **Company** shall be imputed to such **Company** and its **Subsidiaries** under Insuring Clause C.





CAP ON LOSSES FROM CERTIFIED ACTS OF TERRORISM

Policy No.	Eff. Date of Pol.	Exp. Date of Pol.	Eff. Date of End.	Producer No.	Add'l. Prem	Return Prem.
MPL Q787428 - 1	09/19/2025	08/01/2026	09/19/2025	18678000		

THIS ENDORSEMENT CHANGES YOUR POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies your insurance:

A. Cap on Losses From Certified Terrorism Losses

"Certified act of terrorism" means an act that is certified by the Secretary of the Treasury, in accordance with provisions of the federal Terrorism Risk Insurance Act ("TRIA"), to be an act of terrorism. The Terrorism Risk Insurance Act provides that the Secretary of Treasury shall certify an act of terrorism:

1. To be an act of terrorism;
2. To be a violent act or an act that is dangerous to human life, property or infrastructure;
3. To have resulted in damage within the United States, or outside of the United States in the case of an air carrier (as defined in section 40102 of Title 49, United States Code) or a United States flag vessel (or a vessel based principally in the United States, on which United States income tax is paid and whose insurance coverage is subject to regulation in the United States), or the premises of a United States mission; and
4. To have been committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

No act may be certified as an act of terrorism if the act is committed as part of the course of a war declared by Congress (except for workers' compensation) or if losses resulting from the act, in the aggregate for insurance subject to TRIA, do not exceed \$5,000,000.

If aggregate insured losses attributable to one or more "certified acts of terrorism" exceed \$100 billion in a calendar year (January 1 through December 31) and we have met our insurer deductible under the Terrorism Risk Insurance Act, we shall not be liable for the payment of any portion of the amount of such losses that exceeds \$100 billion, and in such case insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of Treasury.

B. Application of Other Exclusions

The terms and limitations of a terrorism exclusion or any other exclusion, or the inapplicability or omission of a terrorism exclusion or any other exclusion, do not serve to create coverage which would otherwise be excluded, limited or restricted under this policy.



New York Amendatory Endorsement

Policy No.	Eff. Date of Pol.	Exp. Date of Pol.	Eff. Date of End.	Add'l Prem.	Return Prem.
MPL Q787428 - 1	09/19/2025	08/01/2026	09/19/2025		

Policyholder: Longmeadow Associates LLC

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

Zurich Select Plus Insurance Policy

General Terms and Conditions

Not-For Profit Management and Company Liability Coverage Part

Private Management and Company Liability Coverage Part

Employment Practices and Third Party Liability Coverage Part

Fiduciary Liability Coverage Part

Crime Coverage Part

It is agreed that:

I. The General Terms and Conditions are amended as follows:

A. Subsection II. GENERAL DEFINITIONS is amended as follows:

1. Subsection E. **Defense Costs** is replaced with the following:

Defense Costs means reasonable costs, charges, fees (including but not limited to attorney's fees and expert's fees) and expenses (other than regular or overtime wages, salaries or fees of the directors, officers or employees of the **Company** or the Insurer) incurred by the **Insureds** (i) in defending or investigating **Claims**, including the premium for appeal, attachment or similar bonds, provided the Insurer shall have no obligation to apply for or furnish such bonds, or (ii) at the Insurer's request to assist the Insurer in investigating a **Claim**.

2. The following Definition is added:

Termination of Coverage means the earlier of: (i) the nonrenewal of this policy; (ii) the cancellation of this policy; or (iii) a decrease in Limits of Liability, a reduction of coverage, an increase in the Retention, a new exclusion or any other change in coverage less favorable to the **Insured**.

B. Section IV. is renamed: LIMITS OF LIABILITY, RETENTION, SINGLE CLAIMS AND COINSURANCE and is amended as follows:

1. Subsection B.1. under RETENTION FOR LIABILITY COVERAGE PARTS is replaced with the following:

- The Insurer's liability under the **Liability Coverage Parts** with respect to **Loss** on account of each **Claim** shall apply only to that part of **Loss** which is excess of the applicable Retention set forth in the Coverage Schedule in Item 7 of the Declarations, and such Retention shall be borne by the **Insureds** uninsured and at their own risk.

The Insuring Clause A Retention set forth in the Coverage Schedule in Item 7. of the Declarations shall apply only to those **Insured Persons** defined in Subparagraphs 1 and 3 under Subsection III.F. of the Management and Company Liability Coverage Part.

2. The following subsection is added:

COINSURANCE

The **Insured Persons** shall bear uninsured at their own risk that percent of the first \$1,000,000 of **Loss** (excess of the applicable Retention under Insuring Clause A) specified as the Coinsurance in Item 7 of the Declarations, and the Insurer's liability hereunder shall apply only to the remaining percent of all such **Loss**.

The Insuring Clause A Coinsurance set forth in the Coverage Schedule in Item 7. of the Declarations shall apply only to those **Insured Persons** defined in Subparagraphs 1 and 3 under Subsection III.F. of the Management and Company Liability Coverage Part.

- C. Subsection V.B. EXTENDED REPORTING PERIOD is replaced with the following:

EXTENDED REPORTING PERIOD

1. Automatic Extension Period

If this policy is subject to a **Termination of Coverage** pursuant to Subparagraph XVI.A.1 or XVI.B, the **Insureds** shall have an automatic extension of the coverage granted by this policy for sixty (60) days, but only with respect to any **Wrongful Act** taking place prior to the effective date of such **Termination of Coverage**. This Automatic Extension Period shall be part of and be included in the Extended Reporting Period, if elected.

2. Extended Reporting Period

If this policy is subject to a **Termination of Coverage** pursuant to Subparagraph XVI.A.1 or XVI.B, the **Insureds** shall have the right, upon payment of the additional premium set forth in Item 3.1 of the Declarations, to the extension of the coverage granted by this policy for the **Extended Reporting Period** set forth in Item 3.2 of the Declarations following the effective date of such **Termination of Coverage**, during which any **Claims** first made against the **Insured** shall be deemed to have been made during the **Policy Period**, but only with respect to any **Wrongful Act** taking place prior to the effective date of such **Termination of Coverage**. Within thirty (30) days after a **Termination of Coverage**, we will notify the **Insured** in writing of the availability of, the premium for, and the importance of purchasing an Optional Extended Reporting Period. This right of extension shall lapse unless written notice of such election together with payment of the additional premium due is given by the **Insureds** to the Insurer not later than:

- a. sixty (60) days following the effective date of such **Termination of Coverage**; or
- b. thirty (30) days from the date the mailing or delivery of notice regarding the option to purchase the Extended Reporting Period,

whichever period is greater.

Where premium is due to the Insurer for coverage during the **Policy Period**, any monies received by the Insurer for the **Extended Reporting Period** shall first be applied to such premium owing for the policy.

If the Insurer cancels this policy and at the effective date of cancellation the Insurer has provided this insurance for less than one year, there shall be no right to elect and purchase the **Extended Reporting Period**.

3. Within thirty (30) days after **Termination of Coverage** the Insurer will advise the **Policyholder** in writing of the Automatic Extension Period coverage and the availability of, the premium for, and the importance of purchasing the **Extended Reporting Period** coverage. Upon cancellation due to nonpayment of premium, the Insurer is not required to provide a premium quotation unless requested by the **Policyholder**.
4. If the **Extended Reporting Period** is purchased, the Automatic Extension Period shall be included within and not in addition to the **Extended Reporting Period**. Any **Extended Reporting Period** if purchased shall be non-cancellable and the entire premium shall be deemed fully earned at the inception of the **Extended Reporting Period**.
5. The Limit of Liability for any **Extended Reporting Period** under the **Liability Coverage Part(s)** shall be part of and not in addition to the applicable Aggregate Limits of Liability for the **Liability Coverage Part(s)** as set forth in Items 4 and 6 of the Declarations. If more than one individual **Extended Reporting Period** is elected the Insurer's maximum aggregate liability under all such individual **Extended Reporting Periods**, combined, shall not exceed the Insurer's maximum aggregate liability for any one individual **Extended Reporting Period**.

- D. Subsection V.B. EXTENDED REPORTING PERIOD is amended to add the following solely with respect to the Not-For-Profit Management and Company Liability Coverage Part:

Where the claims-made relationship has continued for less than three years, the Limits of Liability for the Extended Reporting Period shall be the greater of the remaining Limits of Liability or fifty percent (50%) of Limits of Liability set forth in Item 4 and Item 6 of the Declarations.

Where the claims-made relationship has continued for three years or more, Limits of Liability for the Extended Reporting Period shall be equal to one hundred percent (100%) of the Limits of Liability set forth in Item 4 and Item 6 of the Declarations.

- E. Subsection VIII.A. LIABILITY COVERAGE PART DEFENSE AND SETTLEMENT is replaced with the following:

1. Defense

- a. The Insurer shall have the right and duty to defend any **Claim** against the **Insureds** which is covered under the **Liability Coverage Parts**, even if the allegations therein are groundless, false or fraudulent.
- b. The **Insureds** have the option to select defense counsel or consent to the Insurer's choice of defense counsel, and such consent shall not be unreasonably withheld. The **Insureds** shall have the option to participate in and assist in the direction of the defense of any **Claim**.
- c. Without limiting the Insurer's right to defend any **Claim**, the **Insureds** agree:
 1. not to offer to settle or to settle any **Claim**, incur any **Defense Costs** or otherwise assume any contractual obligation, admit any liability or stipulate to any judgment with respect to any **Claim** without the Insurer's written consent, which shall not be unreasonably withheld. The Insurer shall not be liable for or as a result of any offer to settle, settlement, **Defense Costs**, assumed obligation, admission or stipulated judgment to which it has not given its prior consent; and
 2. that the Insurer shall make any investigation it deems necessary and to effectively associate with the **Insureds** in the defense and settlement, including but not limited to the negotiation of a settlement, of any **Claim** that is or reasonably could be covered in whole or in part by the **Liability Coverage Parts**.

2. Settlement

- a. The **Insureds** agree not to offer to settle or to settle any **Claim**, incur any **Defense Costs** assume any obligation, admit liability or stipulate to any judgment with respect to any **Claim** without the Insurer's written consent, which shall not be unreasonably withheld. The Insurer shall not be liable for or as a result of any offer to settle, settlement, **Defense Costs**, assumed obligation, admission or stipulated judgment to which it has not given prior consent.
- b. The Insurer may, with the consent of the **Insured**, make any settlement of any **Claim** covered under a **Liability Coverage Part** which the Insurer deems prudent. Solely with respect to the Employment Practices and Third Party Discrimination Liability Coverage Part, if purchased, if the **Insureds** consent to the first settlement opportunity which is recommended by the Insurer and which is acceptable to the claimant, (the first "Proposed Settlement") the applicable Retention Amount for all **Loss** on account of such **Claim** shall be retroactively reduced by ten percent (10%). The Insurer's obligation to reduce the applicable Retention Amount under this provision shall not apply if the Employment Practices and Third Party Discrimination Liability Coverage Part Limit of Liability is exhausted, and if the **Insured** against whom the **Claim** is made withholds consent to any settlement acceptable to the claimant and recommended by the Insurer (a "Proposed Settlement"), the Insurer's liability for all **Loss**, including **Defense Costs**, incurred by such **Insured** on account of such **Claim** shall not exceed:
 1. the amount of the Proposed Settlement plus **Defense Costs** incurred up to the date of the **Insured's** refusal to consent to Proposed Settlement of such **Claim**; and
 2. eighty percent (80%) of any **Loss**, including **Defense Costs**, in excess of the amount referenced in Subparagraph a above, incurred in connection with such **Claim**; subject in all events to the applicable Retention and Limit of Liability. The remaining twenty percent (20%) of any **Loss**, including **Defense Costs**, in excess of the amount referenced in Subparagraph 2.b.1. above will be borne by the **Insured** uninsured and at its own risk, notwithstanding anything to the contrary contained in Section VI. ALLOCATION.

F. Subsection A.1. of Section IX. REPORTING AND NOTICE is replaced with the following:

1. As a condition precedent to their rights under any **Liability Coverage Part**, the **Insureds** shall give to the Insurer written notice of any **Claim** made against the **Insureds** as soon as practicable after an **Executive Officer** or the office of general counsel, risk management or functionally equivalent departments, if any, first learns of such **Claim**, but in no event later than the expiration of the **Extended Reporting Period**, if exercised.
 - a. Written notice given by or on behalf of any **Insured** to any licensed agent of the Insurer in the state of New York with particulars sufficient to identify the **Insured** shall be deemed notice.
 - b. Failure to give notice of any **Claim** within the time prescribed herein shall not invalidate such **Claim** if it is demonstrated that it was not reasonably possible to give such notice within the prescribed time and that notice was given as soon as was reasonably possible thereafter.
 - c. With respect to a **Claim** arising out of death or personal injury of any person, if the Insurer disclaims liability or denies coverage based upon the failure to provide timely notice, then the injured person or other claimant may maintain an action directly against the Insurer, in which the sole question is the Insurer's disclaimer or denial based on the failure to provide timely notice, unless within sixty (60) days following such disclaimer or denial, the **Insured** or the Insurer: (i) initiates an action to declare the rights of the parties under the policy; and (ii) names the injured person or other claimant as a party to the action.

G. The following is added to Subsection X. REPRESENTATIONS, SEVERABILITY AND NON-RESCINDABLE COVERAGES

No misrepresentation shall be deemed material unless knowledge by the Insurer of the facts misrepresented would have led to a refusal by the Insurer to enter into this Policy.

H. Section XVI. is replaced with the following:

XVI. POLICY CANCELLATION, NONRENEWAL AND CONDITIONAL RENEWAL

This policy shall terminate at the earliest of the effective date of nonrenewal of the **Policy Period** shown in Item 2 of the Declarations or the effective date of cancellation, as described below.

A. CANCELLATION

1. The **Policyholder** may cancel this policy by surrender of this policy to the Insurer or by giving prior written notice to the Insurer stating when such cancellation shall take effect.
2. The Insurer may cancel this policy only for nonpayment of premium. In such event, the Insurer shall mail written notice of cancellation for nonpayment of premium to the **Policyholder**. Such notice shall state the effective date of cancellation, which shall not be less than fifteen (15) days after mailing such notice.
3. In the event of cancellation, the Insurer shall refund the unearned premium computed pro rata.
4. Notice of cancellation or nonrenewal shall be given to the Policyholder at the last known mailing address shown in our records.

B. NONRENEWAL

If the Insurer elects not to renew this policy, the Insurer shall mail to the **Policyholder** written notice thereof at least sixty (60) days but not more than one hundred twenty (120) days prior to the expiration of the **Policy Period**.

If the Insurer extends the **Policy Period** to comply with this notice requirement, the Limits of Liability set forth in Item 4 and Item 6 of the Declarations shall be increased in proportion to the policy extension.

C. CONDITIONAL RENEWAL

If the Insurer conditions renewal of this policy upon: (i) a change in the Limits of Liability; (ii) a change in the type of coverage; (iii) a reduction in the coverage; (iv) an increased Retention; (v) the addition of an exclusion; or (vi) an increase in premium in excess of ten percent (10%), exclusive of any premium increase due to and commensurate with insured value added or increased exposure units; or as a result of experience rating, loss rating, retrospective rating, or audit; then the Insurer shall mail written notice of such change(s), and the additional premium, if any, to the **Policyholder** at least sixty (60) days but not more than one hundred twenty (120) days prior to the expiration of the **Policy Period**.

If the Insurer extends the **Policy Period** to comply with this notice requirement, the Limit of Liability for each **Policy Period** shown in Item 4 of the Declarations shall be increased in proportion to the policy extension.

D. NOTICE

The Insurer shall send all notices required under this Section XVI. by certified mail to the **Policyholder** at the address in Item 1 of the Declarations, and by mail or electronic mail to the **Policyholder's** authorized agent, if any. Proof of mailing will be sufficient proof of notice.

The Insurer shall not send notice of nonrenewal or conditional renewal if the **Policyholder**, the producer of record, or another insurer of the **Insured**, mails or delivers notice that the policy has been replaced or is no longer desired.

I. The following Sections are added to The General Terms and Conditions:

GOVERNING LAW AND CONFORMITY TO STATUTES

Notwithstanding anything to the contrary in this Policy, the insurance coverage afforded by this Policy as respects operations in New York State shall conform to the requirements of the applicable New York State Insurance Laws and the applicable New York State Department of Financial Services Regulations.

TRANSFER OF DUTIES

1. If we conclude that, based on **Claims** to which this insurance may apply, the per **Claim** Limit of Liability or the Aggregate Limit of Liability is likely to be used up in the payment of judgments, settlements or **Defense Costs**, we will notify the **Policyholder**, in writing, to that effect.
2. When the per **Claim** Limit of Liability or the Aggregate Limit of Liability has actually been used up in the payment of judgments, settlements or **Defense Costs**:

a. We will notify the **Policyholder**, in writing, as soon as practicable, that:

1. Such a limit has actually been used up; and
2. Our duty to defend **Claims** seeking **Loss** subject to that limit has also ended.

b. We will initiate, and cooperate in, the transfer of control, to any appropriate **Insured**, of all **Claims** seeking **Loss** which is subject to that limit and which are made before that limit is used up. That **Insured** must cooperate in the transfer of control of said **Claims**.

We agree to take such steps, as we deem appropriate, to avoid a default in, or continue the defense of, such **Claims** until such transfer is completed, provided the appropriate **Insured** is cooperating in completing such transfer.

We will take no action whatsoever with respect to any **Claim** seeking **Loss** that would have been subject to that limit, had it not been used up, if the **Claim** is made after that limit of insurance has been used up.

- c. The **Policyholder**, and any other **Insured** involved in a **Claim** seeking **Loss** subject to that limit, must arrange for the defense of such **Claim** within such time period as agreed to between the appropriate **Insured** and us. Absent any such agreement, arrangements for the defense of such **Claim** must be made as soon as practicable.
3. The **Policyholder** will reimburse us for expenses we incur in taking those steps we deem appropriate in accordance with the transfer described above.
The duty of the **Policyholder** to reimburse us will begin on:
 - a. The date on which the applicable limit of insurance is used up, if we sent notice in accordance with paragraph 1. above; or
 - b. The date on which we sent notice in accordance with paragraph 2.a. above, if we did not send notice in accordance with paragraph 1. above.
4. The exhaustion of any limit of insurance by the payments of judgments, settlements or **Defense Costs**, and the resulting end of our duty to defend, will not be affected by our failure to comply with any of the provisions of this Condition.

II. The Not-For-Profit Management and Company Liability Coverage Part is amended as follows:

A. Section I. INSURING CLAUSES is amended to replace the first sentence of each Insuring Clause with the following:

A. INSURED PERSON LIABILITY COVERAGE

The Insurer shall pay, on behalf of an **Insured Person**, **Loss** on account of a **Claim** for **Wrongful Acts** first made against the **Insured Person** during the **Policy Period** pursuant to Section IX of the General Terms and Conditions, to the extent that such **Loss** has not been paid or indemnified by any **Company**.

B. COMPANY REIMBURSEMENT COVERAGE

The Insurer shall pay, on behalf of a **Company**, **Loss** on account of a **Claim** for **Wrongful Acts** first made against an **Insured Person** during the **Policy Period** pursuant to Section IX of the General Terms and Conditions, to the extent the **Company** pays or indemnifies an **Insured Person** for such **Loss**.

C. COMPANY LIABILITY COVERAGE

The Insurer shall pay, on behalf of a **Company**, **Loss** on account of a **Claim** for **Wrongful Acts** first made against the **Company** during the **Policy Period** pursuant to Section IX of the General Terms and Conditions.

D. RETIRED INDEPENDENT DIRECTORS LIABILITY COVERAGE

If this Insuring Clause is granted pursuant to the Declarations, the Insurer shall pay on behalf of the **Retired Independent Directors** all **Loss** on account of a **Claim** for **Wrongful Acts** first made against the **Retired Independent Directors** during the **Policy Period** pursuant to Section IX of the General Terms and Conditions, to the extent that such **Loss** has not been paid or indemnified by any **Company** for such **Retired Independent Directors**.

B. Subsection II.E. INDIVIDUAL INSURED PERSON EXTENDED COVERAGE is amended to replace the second subparagraph with the following:

This right of extension shall lapse unless written notice of such election is given by the **Insured Person** to the Insurer within one hundred twenty (120) days of the **Termination of Coverage**. Upon receipt of such written notice, the Insurer shall notify all the **Insured Persons** who elected such individual **Extended Reporting Period** of the additional premium payable by each such **Insured Person** for such extension. This extension of coverage for any such **Insured Person** is conditioned upon such **Insured Person** paying such additional premium within fifteen (15) days after being notified of the amount of the additional premium.

C. Subsection III.K. **Loss** is replaced with the following:

- K. **Loss** means the total amount the **Insureds** become legally obligated to pay on account of **Claims** made against them for **Wrongful Acts** for which coverage applies, including, but not limited to, damages (including punitive, exemplary or multiple damages), judgments, any award of pre-judgment and post-judgment interest with respect to covered damages, settlements, **Corporate Manslaughter Costs, Defense Costs, Plaintiff Fees**, and any **Excess Benefit Transaction Tax** that an **Insured Person** is obligated to pay as a result of a **Claim**; provided that the Insurer's maximum liability for all **Excess Benefit Transaction Taxes** as a result of a single **Claim** shall be \$10,000.

Loss also includes, subject to the Sublimit of Liability as set forth in Item 7 of the Declarations, any **Terrorism Event Expenses** or **Public Relations Expenses**.

The insurability of such punitive, exemplary or multiple damages, civil money penalties and **Excess Benefit Transaction Taxes** shall be determined under the laws of any applicable jurisdiction most favorable to the **Insureds**, including without limitation the jurisdiction in which the **Company**, the **Insured Persons**, the Insurer, this policy or such **Claim** is located.

Provided, however, punitive and exemplary damages are not insurable in the state of New York.

Payment of pre-judgment and post-judgment interest is supplementary to and not paid within policy limits.

Loss does not include any of the following:

1. any amount not indemnified by the **Company** for which the **Insureds** are absolved from payment by reason of any covenant, agreement or court order;
2. taxes, fines or penalties imposed by law, other than civil money penalties and **Excess Benefit Transaction Taxes** expressly referenced above in the first paragraph of this subsection III.I;

3. any amount incurred by the **Company** that represents or is substantially equivalent to an increase in the consideration paid or proposed to be paid by a **Company** in connection with its purchase of any securities or assets;
4. any amount incurred by the **Company** to comply with any injunctive or other equitable relief or any agreement to provide such relief; or
5. matters uninsurable under the law pursuant to which this policy is construed.

provided Subsections 1 through 4 above do not apply to **Defense Costs**.

III. The Private Management and Company Liability Coverage Part is amended as follows:

- A. Section I. INSURING CLAUSES is amended to replace the first sentence of each Insuring Clause with the following:

A. INSURED PERSON LIABILITY COVERAGE

The Insurer shall pay, on behalf of an **Insured Person**, **Loss** on account of a **Claim** for **Wrongful Acts** first made against the **Insured Person** during the **Policy Period** pursuant to Section IX of the General Terms and Conditions, to the extent that such **Loss** has not been paid or indemnified by any **Company**.

B. COMPANY REIMBURSEMENT COVERAGE

The Insurer shall pay, on behalf of a **Company**, **Loss** on account of a **Claim** for **Wrongful Acts** first made against an **Insured Person** during the **Policy Period** pursuant to Section IX of the General Terms and Conditions, to the extent the **Company** pays or indemnifies an **Insured Person** for such **Loss**.

C. COMPANY LIABILITY COVERAGE

The Insurer shall pay, on behalf of a **Company**, **Loss** on account of a **Claim** for **Wrongful Acts** first made against the **Company** during the **Policy Period** pursuant to Section IX of the General Terms and Conditions.

D. RETIRED INDEPENDENT DIRECTORS LIABILITY COVERAGE

If this Insuring Clause is granted pursuant to the Declarations, the Insurer shall pay on behalf of the **Retired Independent Directors** all **Loss** on account of a **Claim** for **Wrongful Acts** first made against the **Retired Independent Directors** during the **Policy Period** pursuant to Section IX of the General Terms and Conditions, to the extent that such **Loss** has not been paid or indemnified by any **Company** for such **Retired Independent Directors**.

- B. The second subparagraph of the INDIVIDUAL INSURED PERSON EXTENDED COVERAGE under section II. EXTENSIONS is replaced with the following:

This right of extension shall lapse unless written notice of such election is given by the **Insured Person** to the Insurer within one hundred twenty (120) days of the **Termination of Coverage**. Upon receipt of such written notice, the Insurer shall notify all the **Insured Persons** who elected such individual **Extended Reporting Period** of the additional premium payable by each such **Insured Person** for such extension. This extension of coverage for any such **Insured Person** is conditioned upon such **Insured Person** paying such additional premium within fifteen (15) days after being notified of the amount of the additional premium.

- C. Subsection III.H. **Loss** is replaced with the following:

- H. **Loss** means the total amount the **Insureds** become legally obligated to pay on account of **Claims** made against them for **Wrongful Acts** for which coverage applies, including, but not limited to, damages (including punitive, exemplary or multiple damages), judgments, any award of pre-judgment and post-judgment interest with respect to covered damages, settlements, **Corporate Manslaughter Costs**, **Defense Costs**, or **Plaintiff Fees**.

Loss also includes, subject to the Sublimit of Liability as set forth in Item 7 of the Declarations, **Securityholder Derivative Demand Investigative Costs**.

The insurability of such punitive, exemplary or multiple damages and civil money penalties shall be determined under the laws of any applicable jurisdiction most favorable to the **Insureds**, including without limitation the jurisdiction in which the **Company**, the **Insured Persons**, the Insurer, this policy or such **Claim** is located.

Provided, however, punitive and exemplary damages are not insurable in the state of New York.

Payment of pre-judgment and post-judgment interest is supplementary to and not paid within policy limits.

Loss does not include any of the following:

1. any amount not indemnified by the **Company** for which the **Insureds** are absolved from payment by reason of any covenant, agreement or court order;
2. taxes, fines or penalties imposed by law;
3. any amount incurred by the **Company** that represents or is substantially equivalent to an increase in the consideration paid or proposed to be paid by a **Company** in connection with its purchase of any securities or assets;
4. any amount incurred by the **Company** to comply with any injunctive or other equitable relief or any agreement to provide such relief; or
5. matters uninsurable under the law pursuant to which this policy is construed;

provided Subsections 1 through 4 above do not apply to **Defense Costs**.

IV. The Employment Practices and Third Party Liability Coverage Part is amended as follows:

- A. Section I. INSURING CLAUSES is amended to replace the first sentence of each Insuring Clause with the following:

A. EMPLOYMENT PRACTICES LIABILITY COVERAGE

The Insurer shall pay, on behalf of an **Insured**, **Loss** on account of a **Claim** for an **Employment Practices Wrongful Act** first made against the **Insured** during the **Policy Period** pursuant to Section IX of the General Terms and Conditions. Provided, however, coverage for discrimination may only be provided on a vicarious basis or for disparate impact.

B. THIRD PARTY LIABILITY COVERAGE

The Insurer shall pay, on behalf of an **Insured**, **Loss** on account of a **Claim** for a **Third Party Wrongful Act** first made against the **Insured** during the **Policy Period** pursuant to Section IX of the General Terms and Conditions. Provided, however, coverage for discrimination may only be provided on a vicarious basis or for disparate impact.

- B. Subsection III.G. **Loss** is amended to replace the first two paragraphs with the following:

Loss means the total amount the **Insured** becomes legally obligated to pay on account of **Claims** made against them for **Wrongful Acts** for which coverage applies, including, but not limited to, covered judgments and settlements and covered damages (including back pay, front pay, punitive, exemplary or multiple damages and associated pre-judgment and post-judgment interest), **Defense Costs**, prevailing plaintiff attorney's fees awarded pursuant to Section 1988 of the Civil Rights Act, and liquidated damages awarded under the Age Discrimination in Employment Act, the Equal Pay Act or the Family Medical Leave Act.

The insurability of such punitive, exemplary, liquidated and multiple damages or attorneys' fees shall be determined under the laws of any applicable jurisdiction most favorable to the **Insureds**, including without limitation the jurisdiction in which the **Company**, the **Insured Persons**, the Insurer, this policy or such **Claim** is located.

Provided, however, punitive and exemplary damages are not insurable in the state of New York.

Payment of pre-judgment and post-judgment interest is supplementary to and not paid within policy limits.

V. The Fiduciary Liability Coverage Part is amended as follows:

- A. Section I. INSURING CLAUSES is amended to replace the first sentence of Insuring Clause A. with the following:

A. FIDUCIARY LIABILITY COVERAGE

The Insurer shall pay, on behalf of an **Insured**, **Loss** on account of a **Claim** for **Wrongful Acts** first made against the **Insured** during the **Policy Period** pursuant to Section IX of the General Terms and Conditions.

- B. The second paragraph under Section II. INDIVIDUAL INSURED PERSON EXTENDED COVERAGE is replaced with the following:

This right of extension shall lapse unless written notice of such election is given by the **Insured Person** to the Insurer within one hundred twenty (120) days of the **Termination of Coverage**. Upon receipt of such written notice, the Insurer shall notify all the **Insured Persons** who elected such individual **Extended Reporting Period** of the additional premium payable by each such **Insured Person** for such extension. This extension of coverage for any such **Insured Person** is conditioned upon such **Insured Person** paying such additional premium within fifteen (15) days after being notified of the amount of the additional premium.

- C. Section III. DEFINITIONS is amended as follows:

1. Subsection C. **Covered Civil Penalties** is replaced by the following:

- C. **Covered Civil Penalties** means those civil penalties imposed upon an **Insured**, subject to the Sublimit of Liability set forth in Item 7 of the Declarations, under the following statutes:

1. the five percent (5%) or less civil penalties imposed upon an **Insured** under §502(i) of **ERISA**, as amended (Section 502(i) Penalties);
2. §502(l) of **ERISA** (the twenty percent (20%) or less civil penalties) imposed upon an **Insured** under §502(l) of **ERISA**, and §502(c) of **ERISA**;
3. the Pension Protection Act of 2006, as amended;
4. the Consolidated Omnibus Budget Reconciliation Act of 1985 ("COBRA"), as amended and the Health Insurance Portability and Accountability Act of 1996 ("HIPPA"), as amended;
5. §4975 of the Internal Revenue Code of 1986, as amended (the fifteen percent (15%) or less excise tax penalty), with respect to a covered judgment;
6. the Patient Protection and Affordable Care Act and the Health Care and Education Act of 2010, as amended under rules and regulations, including interim final rules and regulations, provided by governmental agencies (Health Care Reform Act Penalties); and
7. civil penalties imposed upon an **Insured** by the United Kingdom Secretary of State for Social Services or by the United Kingdom Occupational Pensions Regulatory Authority, pursuant to the English Pension Scheme Act 1993, the English Pensions Act 1995, or rules or regulations thereunder (United Kingdom Pensions Penalties), provided any coverage for such civil penalties applies only if the funds or assets of the subject **Plan** are not used to fund, pay or reimburse the premium for this Coverage Part.

With the exception of Subsection C.2. above, in the State of New York, **Loss** does not include civil penalties or fines imposed upon **Insureds**. Therefore, in the State of New York, there is no coverage for civil penalties imposed upon **Insureds** under the statutes listed above in all subsections except Subsection C.2.2.

2. Subsection H. **Loss** is replaced by the following:

Loss means the total amount the **Insureds** become legally obligated to pay on account of **Claims** made against them for **Wrongful Acts** for which coverage applies, including, but not limited to damages, an award of pre-judgment and post-judgment interest with respect to covered damages, judgments, settlements, and **Defense Costs**.

1. **Loss** includes:

- a. punitive, exemplary or multiple damages;
- b. **Covered Civil Penalties**; and
- c. solely with respect to Subsection I.B, **Voluntary Settlements**.

The insurability of such punitive, exemplary or multiple damages, **Covered Civil Penalties** and **Voluntary Settlements** shall be determined under the laws of any applicable jurisdiction most favorable to the **Insureds**, including without limitation the jurisdiction in which the **Company**, the **Insured Persons**, the Insurer, this Policy or such **Claim** is located.

Provided, however, punitive and exemplary damages are not insurable in the state of New York.

Payment of pre-judgment and post-judgment interest is supplementary to and not paid within policy limits.

2. **Loss** does not include any of the following:

- a. any amount not indemnified by the **Company** for which the **Insureds** are absolved from payment by reason of any covenant, agreement or court order;
 - b. taxes, fines or penalties imposed by law, regardless of whether such taxes, fines or penalties are paid or to be paid to a government entity or to natural persons, other than the civil penalties expressly referenced in (b) above;
 - c. any costs incurred by the **Company** or **Plan** to comply with any injunctive or other non-monetary relief or any agreement to provide such relief;
 - d. surcharge or other relief provided by Section 502(a)(3) of **ERISA**; or
 - e. matters uninsurable under the law pursuant to which this Policy is construed;
- provided Subsections a through d above do not apply to **Defense Costs**.

3. Subsection L. **Voluntary Settlement** is replaced by the following:

Voluntary Settlement means any fees or fines paid by an **Insured** to a governmental authority pursuant to a **Settlement Program** for the actual or alleged inadvertent non-compliance by a **Plan** with any statute, rule or regulation; provided **Voluntary Settlement** shall not include (i) any costs to correct the non-compliance, or any other charges, expenses, taxes or damages; or (ii) any fees, fines or penalties relating to a **Plan** which, as of the earlier of the inception date of this policy or the inception date of the first policy in an uninterrupted series of policies issued by the Insurer of which this policy is a direct or indirect renewal or replacement, any **Insured Person** knew to be actually or allegedly non-compliant.

VI. The Crime Coverage Part is amended as follows:

A. Subsection V.A.1. Concealment, Misrepresentation or Fraud is replaced with the following:

1. **Fraud**

The Insurer will not provide coverage for any insured who has made fraudulent statements or engaged in fraudulent conduct in connection with any loss or damage for which coverage is sought under this Policy.

B. The following is added to Subsection V.A. 12.c:

Upon request, the Underwriter will furnish the **Policyholder**, or the **Policyholder** representative, with a written estimate of damages to real property, specifying all deductions, provided such an estimate has been prepared by the Underwriter or has been prepared on our behalf for our own purposes. This estimate will be provided within thirty days after the **Policyholder** request or its preparation, whichever is later.

C. Subsection V.B. CONDITIONS APPLICABLE TO INSURING CLAUSE A AND INSURING CLAUSE B is amended to add the following:

However, this Subsection B does not apply to an **Employee** whose **Theft, Forgery**, fraud or dishonesty was committed prior to becoming employed by the **Insured** and which resulted in the **Employee's** criminal conviction if, after learning about the **Employee's** past criminal conviction, the **Insured** made a determination to hire or retain the **Employee** utilizing the factors set out in New York Correction Law Article 23-A.

All other terms, conditions, provisions and exclusions of this policy remain the same.



Breach of Contract Exclusion Amended

(With Securities Claim Carveback)

Policy No.	Eff. Date of Pol.	Exp. Date of Pol.	Eff. Date of End.	Add'l Prem.	Return Prem.
MPL Q787428 - 1	09/19/2025	08/01/2026	09/19/2025		

Policyholder: Longmeadow Associates LLC

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

Zurich Select Plus Insurance Policy

Management and Company Liability Coverage Part

It is agreed that Subsection IV.K.1. is replaced with the following:

1. Breach of Contract

for any actual or alleged liability of the **Company** under any written, oral or implied contract or agreement, except to the extent that the **Company** would have been liable in the absence of such contract or agreement; provided this exclusion shall not apply to any **Securities Claim**.

All other terms, conditions, provisions and exclusions of this policy remain the same.



Books and Records Coverage Added

Policy No.	Eff. Date of Pol.	Exp. Date of Pol.	Eff. Date of End.	Add'l Prem.	Return Prem.
MPL Q787428 - 1	09/19/2025	08/01/2026	09/19/2025		

Policyholder: Longmeadow Associates LLC

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

Zurich Select Plus Insurance Policy

Declarations

Management and Company Liability Coverage Part

It is agreed that:

- I. Item 7 of the Declarations is amended to add the following to the Management and Company Liability Coverage Schedule:

\$100,000 Aggregate Sublimit of Liability for all **220 Costs** resulting from a **Books and Records Request**

\$10,000 Retention for each **220 Costs** resulting from a **Books and Records Request**

- II. The Management and Company Liability Coverage Part is amended as follows:

- A. Section II. EXTENSIONS is amended to add the following:

BOOKS AND RECORDS REQUEST COVERAGE

Subject to this policy's other terms, conditions and exclusions, Insuring Clause B and Insuring Clause C include coverage for **220 Costs** incurred by the **Company** as a result from a **Books and Records Request** first received by the **Company** during the **Policy Period** and reported pursuant to Section IX of the General Terms and Conditions, subject to the Sublimit of Liability and Retention set forth in Item 7 of the Declarations.

- B. Section III. DEFINITIONS is amended as follows:

1. Subsection III.H., the definition of **Loss**, is amended to add the following at the end of the first paragraph:

Loss shall also mean **220 Costs** resulting from a **Books and Records Request**.

2. Section III. DEFINITIONS is amended to add the following:

220 Costs means any reasonable costs, charges and fees consented to by the Insurer and incurred by the **Company** in response to a **Books and Records Request**. Such fees shall not include regular or overtime wages, salaries or fees of the directors, officers or employees of the **Company**.

Books and Records Request means a written request submitted by or on behalf of a shareholder of the **Company** upon the Board of Directors of the **Company** to inspect the books and records of such **Company** pursuant to Section 220 of the Delaware General Corporation Law or any other similar state, federal or foreign equivalent law.

All other terms, conditions, provisions and exclusions of this policy remain the same.



Extended Reporting Period Amended – New York (90 Days)

Policy No.	Eff. Date of Pol.	Exp. Date of Pol.	Eff. Date of End.	Add'l Prem.	Return Prem.
MPL Q787428 - 1	09/19/2025	08/01/2026	09/19/2025		

Policyholder: Longmeadow Associates LLC

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

Zurich Select Plus Insurance Policy

General Terms and Conditions

It is agreed that:

Subsection V.B is replaced with the following:

B. EXTENDED REPORTING PERIOD

1. Automatic Extended Reporting Period

If this policy is subject to a **Termination of Coverage** pursuant to Subparagraph XVI.A.1 or XVI.B, the **Insureds** shall have an automatic extension of the coverage granted by this policy for ninety (90) days, but only with respect to any **Wrongful Act** taking place prior to the effective date of such **Termination of Coverage**. This Automatic Extension Period shall be part of and be included in the Extended Reporting Period, if elected.

2. Extended Reporting Period

If this policy is subject to a **Termination of Coverage** pursuant to Subparagraph XVI.A.1 or XVI.B, the **Insureds** shall have the right, upon payment of the additional premium set forth in Item 3.1 of the Declarations, to the extension of the coverage granted by this policy for the **Extended Reporting Period** set forth in Item 3.2 of the Declarations following the effective date of such **Termination of Coverage**, during which any **Claims** first made against the **Insured** shall be deemed to have been made during the **Policy Period**, but only with respect to any **Wrongful Act** taking place prior to the effective date of such **Termination of Coverage**. Within thirty (30) days after a **Termination of Coverage**, we will notify the **Insured** in writing of the availability of, the premium for, and the importance of purchasing an Optional Extended Reporting Period. This right of extension shall lapse unless written notice of such election together with payment of the additional premium due is given by the **Insureds** to the Insurer not later than:

1. ninety (90) days following the effective date of such **Termination of Coverage**; or
2. thirty (30) days from the date the mailing or delivery of notice regarding the option to purchase the Extended Reporting Period,

whichever period is greater.

Where premium is due to the Insurer for coverage during the **Policy Period**, any monies received by the Insurer for the **Extended Reporting Period** shall first be applied to such premium owing for the policy.

If the Insurer cancels this policy and at the effective date of cancellation the Insurer has provided this insurance for less than one year, there shall be no right to elect and purchase the **Extended Reporting Period**.

3. Within thirty (30) days after **Termination of Coverage** the Insurer will advise the **Policyholder** in writing of the Automatic Extension Period coverage and the availability of, the premium for, and the importance

of purchasing the **Extended Reporting Period** coverage. Upon cancellation due to nonpayment of premium, the Insurer is not required to provide a premium quotation unless requested by the **Policyholder**.

4. If the **Extended Reporting Period** is purchased, the Automatic Extension Period shall be included within and not in addition to the **Extended Reporting Period**. Any **Extended Reporting Period** if purchased shall be non-cancellable and the entire premium shall be deemed fully earned at the inception of the **Extended Reporting Period**.
5. The Limit of Liability for any **Extended Reporting Period** under the **Liability Coverage Part(s)** shall be part of and not in addition to the applicable Aggregate Limits of Liability for the **Liability Coverage Part(s)** as set forth in Items 4 and 6 of the Declarations. If more than one individual **Extended Reporting Period** is elected the Insurer's maximum aggregate liability under all such individual **Extended Reporting Periods**, combined, shall not exceed the Insurer's maximum aggregate liability for any one individual **Extended Reporting Period**.

All other terms, conditions, provisions and exclusions of this policy remain the same.





Major Shareholder Exclusion Added (Percentage)

Policy No.	Eff. Date of Pol.	Exp. Date of Pol.	Eff. Date of End.	Add'l Prem.	Return Prem.
MPL Q787428 - 1	09/19/2025	08/01/2026	09/19/2025		

Policyholder: Longmeadow Associates LLC

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

Zurich Select Plus Insurance Policy

Private Management and Company Liability Coverage Part

It is agreed that:

Section IV. EXCLUSIONS is amended to add the following before the last paragraph in the Section and shall apply to all Insuring Clauses and Extensions:

Major Shareholder (Percentage)

brought or maintained by or on behalf of any individual or entity directly or beneficially owning Ten percent (10 %) or more of the outstanding voting securities of the **Company**.

All other terms, conditions, provisions and exclusions of this policy remain the same.



Professional Liability Exclusion Added (Absolute Wording)

Policy No.	Eff. Date of Pol.	Exp. Date of Pol.	Eff. Date of End.	Add'l Prem.	Return Prem.
MPL Q787428 - 1	09/19/2025	08/01/2026	09/19/2025		

Policyholder: Longmeadow Associates LLC

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

Zurich Select Plus Insurance Policy

Management and Company Liability Coverage Part

It is agreed that Subsection IV.K.4. is replaced with the following:

4. Professional Services

based upon, arising out of or attributable to the **Insured's** rendering or failure to render any professional services for others whether or not a fee is paid, including but not limited to, any errors or omissions alleged in the rendering or failure to render professional services for others;

All other terms, conditions, provisions and exclusions of this policy remain the same.



Professional Liability Exclusion Amended

(Include Non-Indemnifiable Loss Carveback)

Policy No.	Eff. Date of Pol.	Exp. Date of Pol.	Eff. Date of End.	Add'l Prem.	Return Prem.
MPL Q787428 - 1	09/19/2025	08/01/2026	09/19/2025		

Policyholder: Longmeadow Associates LLC

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

Zurich Select Plus Insurance Policy

Private Management and Company Liability Coverage Part

It is agreed that:

- I. Subsection IV.K.4. is deleted.
- II. Section IV. EXCLUSIONS is amended to add the following before the last paragraph in the Section and shall apply to all Insuring Clauses and Extensions:

Professional Services

for the rendering or failure to render any professional services or any errors or omissions alleged with respect to the rendering or failure to render any professional services for others; however, this exclusion shall not apply to:

1. any **Securities Claim**; or
2. **Loss** on account of any **Claim** against an **Insured Person** who is not indemnified by the **Company**.

All other terms, conditions, provisions and exclusions of this policy remain the same.



State Amendatory Inconsistency Added

Policy No.	Eff. Date of Pol.	Exp. Date of Pol.	Eff. Date of End.	Add'l Prem.	Return Prem.
MPL Q787428 - 1	09/19/2025	08/01/2026	09/19/2025		

Policyholder: Longmeadow Associates LLC

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

Zurich Select Plus Insurance Policy

General Terms and Conditions

It is agreed that the General Terms and Conditions are amended to add the following:

STATE AMENDATORY INCONSISTENCY

If there is an inconsistency between terms and/or conditions in this policy and any attached state amendatory endorsement, where permitted by law the Insurer shall apply those conditions which are more favorable to the **Insureds**.

All other terms, conditions, provisions and exclusions of this policy remain the same.



Employed Lawyers Sublimit Added

Policy No.	Eff. Date of Pol.	Exp. Date of Pol.	Eff. Date of End.	Add'l Prem.	Return Prem.
MPL Q787428 - 1	09/19/2025	08/01/2026	09/19/2025		

Policyholder: Longmeadow Associates LLC

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

Zurich Select Plus Insurance Policy

Declarations

Management and Company Liability Coverage Part

It is agreed that:

- I. Item 7 of the Declarations is amended to add the following to the Management and Company Liability Coverage Schedule:

\$1,000,000 Aggregate Sublimit of Liability for all **Claims** against **Employed Lawyers** under Insuring Clauses A and B

- II. The Management and Company Liability Coverage Part is amended as follows:

A. Section III. DEFINITIONS is amended as follows:

1. The second subparagraph in the definition of **Insured Person** in Section III. DEFINITIONS is replaced with the following:
 2. any one or more natural persons not described in Subsection 1 above who were, now are or shall become **Employees** (except for an **Employed Lawyer**) of the **Company**; and

2. The definition of **Insured Person** in Section III. DEFINITIONS is amended to add the following:

Insured Person also means an **Employed Lawyer**, but solely with respect to a **Claim** arising out of his or her **Wrongful Acts** in rendering or failing to render professional services as a licensed attorney on behalf and at the direction of the **Company**.

3. Section III. DEFINITIONS is amended to add the following:

Employed Lawyer means a natural person acting as an attorney on behalf of the **Company** who was, now is or shall become an **Employee** of the **Company** that is an attorney at law admitted to the bar in or otherwise licensed to practice law in any state(s) of the United States of America or its territories or possessions.

- B. Section IV. EXCLUSIONS is amended to add the following before the last paragraph of the section and shall apply to all Insuring Clauses and Extensions:

Lawyer Professional Liability

based upon, arising out of or attributable to:

1. any **Wrongful Act** or **Interrelated Wrongful Act** by the **Employed Lawyer** outside the scope of his or her employment with the **Company** as a licensed attorney; or
2. any services provided by the **Employed Lawyer** on behalf of or at the direction of: (a) any entity other than a **Company**; or (b) any natural person, except legal services for an **Insured Person** that are performed on behalf of and at the direction of the **Company**.

All other terms, conditions, provisions and exclusions of this policy remain the same.



Inquiry Costs Coverage Added

Policy No.	Eff. Date of Pol.	Exp. Date of Pol.	Eff. Date of End.	Add'l Prem.	Return Prem.
MPL Q787428 - 1	09/19/2025	08/01/2026	09/19/2025		

Policyholder: Longmeadow Associates LLC

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

Zurich Select Plus Insurance Policy

Declarations

General Terms and Conditions

Private Management and Company Liability Coverage Part

It is agreed that:

- I. Item 7 of the Declarations is amended to include the following to the Management and Company Liability Coverage Schedule:

Sublimit of Liability: \$100,000 Sublimit of Liability for **Inquiry Costs** for Each **Inquiry**
 \$100,000 Aggregate Sublimit of Liability for **Inquiry Costs** for All **Inquiries**

- II. The General Terms and Conditions are amended as follows:

A. Section IV. LIMITS OF LIABILITY, RETENTION AND SINGLE CLAIMS is amended as follows:

1. The last paragraph of Subsection IV.B. RETENTION FOR LIABILITY COVERAGE PART is amended to add the following:

The Insurer's liability under Insuring Clause A and B of the Management and Company Liability Coverage Part with respect to **Inquiry Costs** on account of each **Inquiry** shall apply only to that part of **Inquiry Costs** which are in excess of the applicable Retention set forth in Item 7 of the Declarations, and such Retention shall be borne by the **Company** uninsured and at its own risk.

2. Subsection IV.D. SINGLE CLAIMS is amended to add the following:

Interrelated Inquiries

Solely for the purpose of establishing whether any **Claim** was first made or **Inquiry** was first received during the **Policy Period** or **Extended Reporting Period**, if exercised, if an **Inquiry** is first received by an **Insured** during the **Policy Period** or the **Extended Reporting Period**, if exercised, and reported, in accordance with Subsection IX, then such **Inquiry** and any subsequent **Inquiry** or **Claim** having common nexus of any fact, circumstance, situation, event, transaction, cause or series of causally connected facts, circumstances, situations, events, transactions or causes included in the original request shall be deemed:

- a single **Inquiry** first received at the time such **Inquiry** was reported to the Insurer; or
- a single **Claim** first made at the time such **Inquiry** was first reported to the Insurer.

This policy shall not cover **Inquiry Costs** incurred before such **Inquiry** is reported to the Insurer in accordance with Section IX.

- B. Section IX. REPORTING AND NOTICE is amended to add the following:

Notice of Inquiries

If an **Insured** elects to seek coverage for **Inquiry Costs** in connection with any **Inquiry**, the **Company** or the **Insured Person** shall give to the Insurer written notice of any **Inquiry** as soon as practicable, but in no event later than sixty (60) days after the expiration of the **Policy Period**.

II. The Private Management and Company Liability Coverage Part is amended as follows:

A. Section I. INSURING CLAUSES is amended as follows:

1. Subsection I.A is amended to add the following:

The Insurer shall pay, on behalf of the **Insured Persons**, **Inquiry Costs** on account of an **Inquiry** first received by the **Insured Person** during the **Policy Period** and reported pursuant to Section IX of the General Terms and Conditions, to the extent that such **Inquiry Costs** have not been paid or indemnified by any **Company**, subject to the Sublimits of Liability set forth in Item 7 of the Declarations.

2. Subsection I.B is amended to add the following:

The Insurer shall pay, on behalf of a **Company**, **Inquiry Costs** on account of an **Inquiry** first received by an **Insured Person** during the **Policy Period** and reported pursuant to Section IX of the General Terms and Conditions, to the extent the **Company** pays or indemnifies an **Insured Person** for such **Inquiry Costs**, subject to the Sublimits of Liability set forth in Item 7 of the Declarations.

B. Section III. DEFINITIONS is amended as follows:

1. Subsection III.A.9 in the definition of **Claim** is deleted.

2. Subsection III.H is amended to add the following:

Loss shall include **Inquiry Costs**.

3. Section III. DEFINITIONS is amended to add the following:

Enforcement Body means any federal, state, local or foreign law enforcement or governmental investigative authority, enforcement unit or other self-regulatory body.

Inquiry means:

1. a request by an **Enforcement Body** that an **Insured Person** appear before the **Enforcement Body** or produce documents regarding his or her insured capacity or the business of the **Company**; or
2. a request by the **Company** that an **Insured Person** appear for an interview, sworn statement, deposition or meeting regarding his or her insured capacity or the business of the **Company**, arising out of an investigation by an **Enforcement Body** concerning the business of the **Company** or that **Insured Person's** insured capacity;

provided that **Inquiry** shall not include any routine or regularly scheduled regulatory or **Company** supervision, inspection, compliance, review, examination, production or audit, including any request for mandatory information from a regulated entity, conducted in the **Company's** and/or **Enforcement Body's** normal review or compliance process.

Inquiry Costs means reasonable costs, charges, and fees (including but not limited to attorney's fees) and expenses (other than compensation of the directors, officers or employees of the **Company**) consented to by the Insurer and incurred by an **Insured** solely in connection with the preparation for and response to an **Inquiry**; provided that **Inquiry Costs** shall not include any costs of complying with any discovery or other requests seeking the production of documents (including electronic information) in the possession or control of a **Company** or any other third party.

C. Section IV. EXCLUSIONS is amended to add the following before the last paragraph of the Section and shall apply to all Insuring Clauses and Extensions:

Prior Inquiries

The Insurer shall not be liable for **Loss** on account of, and shall not be obligated to defend, any **Claim** made against or **Inquiry** received by an **Insured** based upon, arising out of, or attributable to any fact, circumstance or situation which has been the subject of any written notice given and accepted prior to inception of this policy under any prior directors and officers liability insurance policy.

All other terms, conditions, provisions and exclusions of this policy remain the same.



Severability Amended

(Policyholder Limited to CEO and CFO Knowledge)

Policy No.	Eff. Date of Pol.	Exp. Date of Pol.	Eff. Date of End.	Add'l Prem.	Return Prem.
MPL Q787428 - 1	09/19/2025	08/01/2026	09/19/2025		

Policyholder: Longmeadow Associates LLC

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

Zurich Select Plus Insurance Policy

General Terms and Conditions

It is agreed that Subsection X.B. SEVERABILITY is replaced with the following:

B. SEVERABILITY

The **Application** shall be construed as a separate application for coverage by each of the **Insured Persons**. In the event the **Application** contains any misrepresentation or omission: (i) made with the intent to deceive; or (ii) which materially affects either the acceptance of the risk or the hazard assumed by the Insurer under a **Liability Coverage Part**, then such **Liability Coverage Part** shall not provide coverage to:

1. any **Policyholder** to the extent such **Policyholder** indemnifies an **Insured Person** who knew the facts that were not truthfully disclosed in the **Application**; and
2. any **Policyholder** and its **Subsidiaries** and **Plans** if the chief executive officer or chief financial officer of such **Policyholder** knew the facts that were not truthfully disclosed in the **Application**;

whether or not such chief executive officer, chief financial officer, or **Insured Person** knew the **Application** contained such misrepresentation or omission. Knowledge of one **Insured Person** shall not be imputed to any other **Insured Persons** for purposes of this Section X.

All other terms, conditions, provisions and exclusions of this policy remain the same.



Crisis Management Coverage Added

Policy No.	Eff. Date of Pol.	Exp. Date of Pol.	Eff. Date of End.	Add'l Prem.	Return Prem.
MPL Q787428 - 1	09/19/2025	08/01/2026	09/19/2025		

Policyholder: Longmeadow Associates LLC

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

Zurich Select Plus Insurance Policy

General Terms and Conditions

☒ Management and Company Liability Coverage Part

It is agreed that solely with respect to the Coverage Parts selected above, this policy is amended as follows:

I. The General Terms and Conditions is amended as follows:

A. The General Terms and Conditions is amended to add the following coverage extensions:

TERRORISM EVENT EXPENSES

Subject to this policy's other terms, conditions and exclusions, the Insurer shall pay, on behalf of the **Company**, any **Terrorism Event Expenses** for a **Terrorism Event** that first occurs during the **Policy Period** and is reported to the Insurer pursuant to Section IX of the General Terms and Conditions. The Insurer's maximum liability for all covered **Terrorism Event Expenses** combined shall be \$10,000, which is part of and not in addition to the applicable Limits of Liability set forth in Items 4 and 6 of the Declarations.

PUBLIC RELATIONS EXPENSES

Subject to this policy's other terms, conditions and exclusions, the Insurer shall pay, on behalf of the **Company**, any **Public Relations Expenses** for a **Workplace Violence Event, Solvency Event, Sexual Misconduct Event, Tax Status Event, Key Person Event, or Regulatory Event** that first occurs during the **Policy Period** and is reported to the Insurer pursuant to Section IX of the General Terms and Conditions. The Insurer's maximum liability for all covered **Public Relations Expenses** combined shall be \$100,000, which is part of and not in addition to the applicable Limits of Liability set forth in Items 4 and 6 of the Declarations.

Solely with respect to a **Solvency Event**, the Insurer's liability under this Public Relations Expense Extension shall cease at such time as a bankruptcy petition for relief is filed by the **Company**.

IDENTITY THEFT EVENT EXPENSES

Subject to this policy's other terms, conditions and exclusions, the Insurer shall pay, on behalf of the **Company**, any **Identity Theft Event Expenses** for an **Identity Theft Event** that first occurs during the **Policy Period** and is reported to the Insurer pursuant to Section IX of the General Terms and Conditions. The Insurer's maximum liability for all covered **Identity Theft Event Expenses** combined shall be \$10,000, which is part of and not in addition to the applicable Limits of Liability set forth in Items 4 and 6 of the Declarations.

An **Identity Theft Event** first occurs when the **Policyholder** or any of its directors or **Executive Officers** first becomes aware of the **Identity Theft Event**.

B. Section II. GENERAL DEFINITIONS is amended to add the following:

Crisis Event means a **Terrorism Event, Workplace Violence Event, Solvency Event, Sexual Misconduct Event, Tax Status Event, Key Person Event, Regulatory Event, or Identity Theft Event.**

Identity Theft Event means: (i) an unauthorized disclosure of **Personal Information** in the care, custody or control of any **Insured**; or (ii) an unintentional violation of any **Privacy Regulation** by any **Insured**.

Identity Theft Event Expenses means the reasonable and necessary fees and expenses incurred by an **Insured** during the period of twelve (12) months after an **Identity Theft Event** for any public relations, crisis management, law or information technology consulting firm to:

1. conduct computer forensic analysis to investigate the **Company's** computer systems to determine the cause and extent of the **Identity Theft Event**;
2. determine indemnification obligations under any written contract with respect to any actual or alleged wrongdoing by a **Service Provider** in connection with such **Identity Theft Event**;
3. determine if the **Company** is obligated to notify affected customers or applicable regulatory agencies of such **Identity Theft Event**; or
4. plan, implement, execute and manage a public relations campaign to counter or minimize any actual or anticipated adverse effects of negative publicity from such **Identity Theft Event** or to protect or restore the **Company's** business reputation in response to negative publicity following such **Identity Theft Event**.

Provided, however, **Identity Theft Event Expenses** shall not include: (i) regular or overtime wages, salaries, or fees of the **Company's** directors, officers or employees; (ii) cost to comply with injunctive relief; (iii) taxes, fines, sanctions, or penalties; or (iv) principal, interest of other moneys paid or dues as a result of any loan, lease or extension of credit.

Key Person Event means the death, incapacity, abduction or criminal indictment of a director or **Executive Officer** that results in the publication or broadcast of information which can reasonably be expected to damage the **Company's** reputation.

Personal Information means any information from which an individual may be uniquely and reliably identified or contacted including, but not limited to, an individual's name, telephone number, email, social security number, medical or healthcare data or other protected health information, driver's license number or state identification number, account number, credit card number, debit card number, access code or password that would permit access to that individual's financial account or any other non-public personal information as defined in **Privacy Regulations**; provided, however, **Personal Information** does not include information lawfully available to the general public for any reason, including but not limited to information from federal, state, or local government records.

Privacy Regulations means any statute that addresses or regulates the control and use of personally identifiable financial, medical or other sensitive information, including the statutes listed below and any amendments thereto or regulations promulgated thereunder:

1. Health Information Technology for Economic and Clinical Health Act (HITECH) (American Recovery and Reinvestment Act of 2009);
2. Health Insurance Portability and Accountability Act of 1996 (Public Law 104-191);
3. Gramm-Leach-Bliley Act of 1999;
4. California Security Breach Notification Act (CA SB 1386), CA AB 211 and CA SB 541;
5. Section 5(a) of the Federal Trade Commission Act (15 U.S.C. 45(a)), but solely for alleged unfair or deceptive acts or practices in or affecting commerce;
6. Massachusetts 201 CMR 17;
7. the Identity Red Flags under the Fair and Accurate Credit Transactions Act of 2003; and
8. any similar state, federal or foreign identity theft or privacy protection statute.

Public Relations Expenses means the reasonable and necessary fees and expenses incurred by the **Company** for any public relations, crisis management or law firm, with the Insurer's prior consent, to plan, implement, execute and manage a public relations campaign to counter or minimize any actual or anticipated adverse effects of negative publicity or to protect or restore the **Company's** business reputation in response to negative publicity.

Solely with respect to a **Workplace Violence Event**, **Sexual Misconduct Event** or **Key Person Event**, **Public Relations Expenses** shall include the reasonable and necessary expense of an emotional counseling seminar for **Insured Persons** conducted by an independent consultant following the **Workplace Violence Event**, **Sexual Misconduct Event** or **Key Person Event**.

Solely in connection with a **Key Person Event**, **Public Relations Expenses** include any cost to seek, interview and hire a replacement for the subject of the **Key Person Event**.

Regulatory Event means an investigation by a governmental entity that alleges the misuse of governmental funds that results in the publication or broadcast of information which can reasonably be expected to damage the **Company's** reputation.

Service Provider means a business the **Company** does not own, operate, or control, but that the **Company** hires for a fee pursuant to a written contract to: maintain, manage, or control computer systems used for the purchase of the **Company's** goods and services; facilitate the **Company's** internet website; provide computer services to the **Company**; or perform duties related to the conduct of the **Company's** business.

Sexual Misconduct Event means the publication or broadcast of information which can reasonably be expected to damage the **Company's** reputation based on an allegation that an **Insured Person**, in his or her capacity as such, has engaged in sexual abuse or assault.

Solvency Event means the threat of imminent voluntary or involuntary bankruptcy filing of the **Company** that results in the publication or broadcast of information which can reasonably be expected to damage the **Company's** reputation.

Tax Status Event means any challenge to the not-for-profit tax status of an entity formed by the **Company** that results in the publication or broadcast of information which can reasonably be expected to damage the **Company's** reputation. The Insurer will in no way be responsible for the payment of any taxes under this extension.

Terrorism Event means an act as defined in Section 102(1)(A) of the Terrorism Risk Insurance Act of 2002.

Terrorism Event Expenses means any of the following if resulting from a **Terrorism Event** and incurred with the Insurer's consent:

1. reasonable and necessary travel related expenses incurred by a director or officer of the **Company**, including any hotel expense necessitated by the cancellation of previously scheduled air or rail travel and the increased costs of any replacement air or rail travel;
2. reasonable and necessary fees incurred in retaining a real estate professional to assist the **Company** secure an alternative to its physical business location. Such fees shall not include the costs of renting or purchasing said real estate; or
3. reasonable and necessary expenses incurred to secure temporary space for: (i) meeting with the **Company's** customers, clients, members or donors; or (ii) an event sponsored by the **Company**.

With respect to subparagraphs b and c above, the **Company's** physical business location or the site originally scheduled for the meeting or event must have been damaged requiring temporary relocation, or destroyed as a result of the **Terrorism Event**.

Workplace Violence Event means any actual or alleged intentional and unlawful use of, or threat to use, deadly force with an intent to cause harm at the **Company's** premises that results in the publication or broadcast of information which can reasonably be expected to damage the **Company's** reputation, other than: (i) war, invasion, insurrection, riot, rebellion, revolution, civil war, or military action; or (ii) the use or threat of force or violence for the purpose of demanding money, securities or property.

C. Subsection IV.B RETENTION FOR LIABILITY COVERAGE PART is amended to add the following:

No Retention shall apply to any **Crisis Event**.

D. Subsection IV.D SINGLE CLAIMS:

Interrelated Crisis Events

Solely for the purpose of establishing whether any **Claim** arising out of a **Crisis Event** was first made during the **Policy Period**, such **Crisis Event** and any subsequent **Claim** having common nexus of any fact, circumstance, situation, event, transaction, cause or series of causally connected facts, circumstances, situations, events, transactions or causes included in the initial notice of such **Crisis Event** shall be deemed:

1. a single **Claim** first made at the time such **Crisis Event** was reported to the Insurer expressly stating it to be submitted as a **Claim**; or
2. if the **Crisis Event** was not reported, a single **Claim** first made at the time such **Claim** was first reported to the Insurer.

E. Subsection IX.A. is amended to add the following:

Crisis Event Notice Requirements

It shall be at the sole discretion of the **Insured** to elect to provide notice of a **Crisis Event**. If an **Insured** elects to seek coverage for a **Crisis Event**, the **Company** or the **Insured Person** shall give to the Insurer written notice of any **Crisis Event** as soon as practicable after it commences but in no event later than (i) the expiration of the **Policy Period**, or (ii) thirty (30) days after the expiration of the **Policy Period** for events occurring within thirty (30) days prior to expiration. Such notice shall include a description of the **Crisis Event**, including the nature of the **Crisis Event**, the nature of the alleged or potential damage, the names of the individuals involved with the **Crisis Event**, and the manner in which the **Insureds** first became aware of the **Crisis Event**.

Any notice to the Insurer of a **Crisis Event** shall not constitute notice to the Insurer of a **Claim** or a circumstance which could give rise to a **Claim** as provided in this Subsection IX.A.1 unless such notice expressly states it to be so and otherwise conforms to the provisions herein.

- II. Solely with respect to the coverage afforded by this endorsement, the definition of **Claim** in Section III. DEFINITIONS of the Coverage Part(s) selected above is amended to add the following:

Claim shall also mean a **Crisis Event**.

All other terms, conditions, provisions and exclusions of this policy remain the same.



Wholesale Broker Enhancement Amendatory Endorsement - New York

Policy No.	Eff. Date of Pol.	Exp. Date of Pol.	Eff. Date of End.	Add'l Prem.	Return Prem.
MPL Q787428 - 1	09/19/2025	08/01/2026	09/19/2025		

Policyholder: Longmeadow Associates LLC

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

Zurich Select Plus Insurance Policy

Declarations

General Terms and Conditions

☒ Private Management and Company Liability Coverage Part

Solely with respect to the **Liability Coverage Parts** selected above, it is agreed that:

I. Item 3. of the Declarations is replaced with the following:

Item 3. **Extended Reporting Period:** Option 1: 1. Additional Premium: 95% of Annual Premium
2. Additional Period: 1 year

II. The General Terms and Conditions are amended as follows:

A. Section II. GENERAL DEFINITIONS is amended as follows:

1. The following are added to Section II:

Employee Privacy Violation means the failure to:

1. secure an **Employee's Record** from actual or potential unauthorized access by another person or by an organization which results in injury to such **Employee**; or
2. provide notice, as required by any federal, state, or local statutory law or common law anywhere in the world, to an **Employee** whose **Record** was accessed or may have been accessed by an unauthorized person.

Record means an **Employee's** last name, in combination with:

1. the **Employee's** social security number, driver's license number or other personal identification number (including an employee identification number or student identification number);
2. the **Employee's** financial account number (including a bank account number, retirement account number, or healthcare spending account number);

3. the **Employee's** credit, debit or other payment card number; or
4. the **Employee's** individually identifiable health information (as described in the Health Insurance Portability and Accountability Act of 1996 ("HIPAA")), that is held by the **Company**;

when any such information in (1) through (4) above is intended by the **Company** to be accessible only by persons or organizations specifically authorized by the **Company** to have access to such information.

2. Subsection II.H. is replaced with the following:

H. **Employment Practices Wrongful Act** means any error, misstatement, misleading statement, act, omission, neglect, or breach of duty which results in a **Claim** brought and maintained by or on behalf of any past, present, future or prospective **Employee(s)** of the **Company** against any **Insured** alleging:

1. breach of any express or implied employment contract;
2. violation of any law or public policy concerning discrimination in employment, including violations based upon race, national origin, religion, sex, age, sexual orientation or preference, pregnancy, military status, marital status, disability, medical leave or genetic predisposition;
3. employment-related torts including without limitation wrongful termination; failure or refusal to hire or promote; wrongful discipline; wrongful reference, deprivation of a career opportunity, demotion or adverse change in terms, conditions or status of employment; wrongful failure to grant tenure; humiliation; retaliation for asserting a legal right; workplace harassment including through the use of social media and without limitation offensive, intimidating, coercive or unwelcome conduct, advances, contact or communications; bullying; negligent hiring, retention, supervision, training or performance evaluation; failure to adopt and/or enforce adequate employment-related workplace policies and procedures; and employment-related misrepresentation, defamation, invasion of privacy or infliction of emotional distress;
4. any employment-related tort as defined in subparagraph 3 above, relating to or arising from any internet activity, including but not limited to social networking activities, regardless of whether such internet activity is during work hours or on the **Company** premises; or
5. any **Employee Privacy Violation** committed, attempted, or allegedly committed or attempted by the **Company** or by an **Insured Person** while acting in his or her capacity as such.

- B. Subsection IV.B. RETENTION FOR LIABILITY COVERAGE PART is replaced with the following:

B. RETENTION FOR LIABILITY COVERAGE PART

1. The Insurer's liability under the **Liability Coverage Parts** with respect to **Loss** on account of each **Claim** shall apply only to that part of **Loss** which is excess of the applicable Retention set forth in the Coverage Schedule in Item 7 of the Declarations, and such Retention shall be borne by the **Insureds** uninsured and at their own risk. No Retention shall apply to **Loss** incurred by an **Insured Person** for which the **Company** is not permitted by common or statutory law to indemnify, or is not financially able to indemnify by reason of **Financial Impairment**.
2. If for any reason (including but not limited to **Financial Impairment**) the **Company** fails or refuses to advance, pay or indemnify covered **Loss** of an **Insured Person** within the applicable Retention, if any, then the Insurer shall advance such amounts on behalf of the **Insured Person** until either (i) the **Company** has agreed to make such payments, or (ii) the Retention has been satisfied. In no event shall any such advancement by the Insurer relieve the **Company** of any duty it may have to provide advancement, payment or indemnification to any **Insured Person** or of any duty by the **Company** to reimburse the Insurer for such advancement.

Advancement, payment or indemnification of an **Insured Person** by the **Company**: (i) is deemed failed if it has been requested by an **Insured Person** in writing and has not been provided by, agreed to be provided by or acknowledged as an obligation by the **Company** within sixty (60) days of such request; and (ii) is only deemed refused if and to the extent the **Company** gives written notice of the refusal to the **Insured Person**. Advancement, payment or indemnification of an **Insured Person** by the **Company** shall only be deemed "failed" or "refused" to the extent such advancement, payment, or indemnification is not provided, or agreed to be provided, or acknowledged by and collectible from the **Company**. Any payment or advancement by the Insurer within an applicable Retention shall reduce the applicable Limit of Liability.

C. Subsection VII.A.2. in CHANGES IN EXPOSURE is replaced with the following:

2. However, if such newly acquired organization is a financial institution, healthcare related entity, has publicly traded debt or is publicly owned then coverage under this policy or such Coverage Part as provided in subsection 1 above shall apply only if the Insurer agrees to afford such coverage pursuant to subsection 3 below.

D. Subsection VIII.A.3. in DEFENSE AND SETTLEMENT is replaced with the following:

3. The Insurer may, with the consent of the **Insured**, make any settlement of any covered **Claim** which the Insurer deems expedient. Solely with respect to the Employment Practices and Third Party Liability Coverage Part, if purchased, if the **Insureds** consent to the first settlement opportunity which is recommended by the Insurer and which is acceptable to the claimant, the applicable Retention Amount for all **Loss** on account of such **Claim** shall be retroactively reduced by ten (10%) percent.

If the **Insured** against whom the **Claim** is made withholds consent to any settlement acceptable to the claimant and recommended by the Insurer (a "Proposed Settlement"), the Insurer's liability for all **Loss**, including **Defense Costs**, incurred by such **Insured** on account of such **Claim** shall not exceed:

- a. the amount of the Proposed Settlement plus **Defense Costs** incurred up to the date of the **Insured's** refusal to consent to Proposed Settlement of such **Claim**; and
- b. ninety percent (90%) of any **Loss**, including **Defense Costs**, in excess of the amount referenced in paragraph a above, incurred in connection with such **Claim**; subject in all events to the applicable Retention and Limit of Liability. The remaining ten percent (10%) of any **Loss**, including **Defense Costs**, in excess of the amount referenced in paragraph a above will be borne by the **Insured** uninsured and at its own risk, notwithstanding anything to the contrary contained in Section VI ALLOCATION.

E. Subsection X.B. SEVERABILITY is replaced with the following:

B. SEVERABILITY

The **Application** shall be construed as a separate application for coverage by each of the **Insured Persons**. In the event the **Application** contains any material misrepresentation or omission which affects either the acceptance of the risk or the hazard assumed by the Insurer under a **Liability Coverage Part**, then such **Liability Coverage Part** shall be void as to:

1. any **Policyholder** to the extent such **Policyholder** indemnifies an **Insured Person** who knew the facts that were not truthfully disclosed in the **Application**; and
2. any **Policyholder** and its **Subsidiaries** and **Plans** if an **Executive Officer** of such **Policyholder** knew the facts that were not truthfully disclosed in the **Application**;

whether or not such **Executive Officer** or **Insured Person** knew the **Application** contained such misrepresentation or omission. No knowledge of one **Insured Person** shall be imputed to any other **Insured Persons** for purposes of this Section X.

No misrepresentation shall be deemed material unless knowledge by the Insurer of the facts misrepresented would have led to a refusal by the Insurer to enter into this **Policy**.

F. Subsection X.C. NON-RESCINDABLE COVERAGES is replaced with the following:

C. NON-RESCINDABLE COVERAGES

The Insurer shall not have the right to rescind or void this policy for any reason.

G. Section XII. OTHER INSURANCE is replaced with the following:

XII. OTHER INSURANCE

Solely with respect to any **Liability Coverage Part**, if any **Loss** is insured under any other valid and collectible policy(ies) issued to any **Insured**, then this policy shall act as an excess insurance policy and will cover such **Loss**, subject to its limitations, conditions, provisions and other terms, only to the extent that the amount of such **Loss** is in excess of the amount of such other insurance (including any self-insured retentions thereunder) whether such other insurance is stated to be primary, contributory, excess, contingent or otherwise, unless such other insurance is written only as specific excess insurance over the Limits of Liability provided in this policy.

Provided however if any **Loss** is insured under any other valid and collectible (i) personal umbrella excess liability insurance policy and/or (ii) personal director liability insurance policy purchased by or on behalf of an **Insured Person**, then this policy shall cover such **Loss**, subject to its limitations, conditions, provisions and other terms on a primary basis.

H. The second paragraph of Section XIX. ALTERNATIVE DISPUTE RESOLUTION is replaced with the following:

If the dispute is not resolved in the mediation, then either party to the mediation may thereafter commence a judicial proceeding against the other party with respect to such dispute, provided that neither party may commence such a judicial proceeding prior to sixty (60) days following termination of the mediation.

III. If selected above, the Private Management and Company Liability Coverage Part is amended as follows:

A. Subsection III.C.3. in the definition of **Employee** is replaced with the following:

3. volunteers or interns of the **Company**;

B. Section IV. EXCLUSIONS is amended as follows:

1. Subsection IV.C. is replaced with the following:

C. ERISA

based upon, arising out of, or related to an actual or alleged violation of the responsibilities, obligations or duties imposed by **ERISA** or similar provisions of any federal, state or local statutory law or common law with respect to any pension, profit sharing, health and welfare or other employee benefit plan or trust established or maintained for the purpose of providing benefits to employees of the **Company**, or for any other matter claimed against an **Insured** in whole or in part in their capacity as a settlor of any such benefit plan or trust;

2. Subsection IV.E. is replaced with the following:

E. Pollution (Environmental Event)

based upon, arising out of or attributable to an actual or alleged **Environmental Event**; however, this exclusion shall not apply to:

1. **Environmental Mismanagement Claims**; or

2. a derivative action brought or maintained on behalf of the **Company** by one or more persons who are not **Insured Persons** if the **Claim** is brought and maintained without the solicitation or active assistance or participation of the **Company** or any **Insured Person**.

3. Subsection IV.F. is replaced with the following:

F. Conduct

based upon, arising out of or attributable to any **Insured's**:

1. deliberate fraud;

2. criminal act or willful violation of any statute or regulation; or

3. personal profit or remuneration to which such **Insured** was not legally entitled;

established by a final, non-appealable adjudication adverse to such **Insured** in any underlying proceeding not brought by the Insurer; however, this exclusion shall not apply to **Defense Costs**;

IV. If selected above, the Fiduciary Liability Coverage Part is amended as follows:

A. Subsection III.D.3 in the definition of **Employee** is replaced with the following:

3. interns or volunteers of the **Company**;

B. Subsection IV.B. is replaced with the following:

B. Conduct

based upon, arising out of or attributable to any **Insured's**:

1. deliberate fraud;

2. criminal act or willful violation of any statute or regulation; or
 3. personal profit or remuneration to which such **Insured** was not legally entitled;
- established by a final, non-appealable adjudication adverse to such **Insured** in any underlying proceeding not brought by the Insurer; however, this exclusion shall not apply to **Defense Costs**;

All other terms, conditions, provisions and exclusions of this policy remain the same.





Cyber Exclusion Added

Policy No.	Eff. Date of Pol.	Exp. Date of Pol.	Eff. Date of End.	Add'l Prem.	Return Prem.
MPL Q787428 - 1	09/19/2025	08/01/2026	09/19/2025		

Policyholder: Longmeadow Associates LLC

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

Zurich Select Plus Insurance Policy

- ☒ Private Management and Company Liability Coverage Part
- ☐ Not-For-Profit Management and Company Liability Coverage Part
- ☐ Employment Practices and Third Party Liability Coverage Part
- ☐ Fiduciary Liability Coverage Part
- ☐ Crime Coverage Part

It is agreed that:

- I. Section II. GENERAL DEFINITIONS of the General Terms and Conditions is amended to add the following:

Personal Information means any information from which an individual may be uniquely and reliably identified or contacted including, but not limited to, an individual's name, telephone number, email, social security number, medical or healthcare data or other protected health information, driver's license number or state identification number, account number, credit card number, debit card number, access code or password that would permit access to that individual's financial account or any other non-public personal information as defined in **Privacy Regulations**; provided, however, **Personal Information** does not include information lawfully available to the general public for any reason, including but not limited to information from federal, state, or local government records.

Privacy Regulations means any statute that addresses or regulates the control and use of personally identifiable financial, medical or other sensitive information, including but not limited to the statutes listed below and any amendments thereto or regulations promulgated thereunder:

1. Health Information Technology for Economic and Clinical Health Act (HITECH) (American Recovery and Reinvestment Act of 2009);
2. Health Insurance Portability and Accountability Act of 1996 (Public Law 104-191);
3. Gramm-Leach-Bliley Act of 1999;
4. California Security Breach Notification Act (CA SB 1386), CA AB 211 and CA SB 541;
5. California Consumer Privacy Act (CA AB 375), CA SB 1121 and CA AB 25;
6. Section 5(a) of the Federal Trade Commission Act (15 U.S.C. 45(a)), but solely for alleged unfair or deceptive acts or practices in or affecting commerce;
7. Massachusetts 201 CMR 17;
8. the Identity Red Flags under the Fair and Accurate Credit Transactions Act of 2003;
9. Driver's Privacy Protection Act (18 U.S.C. § 2721-2725) (U.S.);
10. Privacy Act, R.S.C. 1985., c. P-21 (Canada);
11. Personal Information Protection and Electronic Documents Act (PIPEDA), S.C. 2000, c. 5 (Canada);

12. Personal Information Protection Act, S.B.C. 2003, c 63 (Canada);
13. An Act Respecting the Protection of Personal Information in the Private Sector, R.S.Q.c. p-39-1 [S.Q. 1993, c.17] (Canada);
14. Personal Information Protection Act, S.A. 2003, c. P-6.5 (Canada);
15. Personal Health Information Protection Act, 2004, S.O. 2004, c. 3, Sch. A (Canada);
16. Illinois Biometric Information Privacy Act 740 ILCS 14/1 (2008);
17. General Data Protection Regulation (Regulation (EU) 2016/679); and
18. any similar state, federal or foreign identity theft or privacy protection statute.

II. For any **Liability Coverage Part(s)** selected above, the EXCLUSIONS Section of such **Liability Coverage Part(s)** are amended to add the following before the last paragraph in the Section and shall apply to all Insuring Clauses and Extensions:

The Insurer shall not be liable under this Coverage Part for that portion of **Loss** on account of, and shall not be obligated to defend, any **Claim** made against any **Insured** based upon, arising out of, or attributable to an unauthorized:

1. disclosure or loss of **Personal Information** in the care, custody or control of any **Insured**, or failure to disclose the loss of **Personal Information** in violation of any law or regulation;
2. disclosure or loss of corporate information in the care, custody or control of any **Insured** that is specifically designated as confidential or is protected under a nondisclosure agreement or similar contract;
3. access to, failure to prevent access to, use of, or failure to prevent use of the **Insured's** computer systems including, hardware and software, and the electronic data stored thereon, as well as associated input and output devices, data storage devices, networking equipment, components, firmware and electronic backup facilities, including systems accessible through the Internet, intranets, extranets or virtual private networks; or
4. introduction or transmission of unauthorized, corrupting, or harmful software code, including but not limited to computer viruses, Trojan horses, keystroke loggers, cookies, spyware, adware, worms, and logic bombs;

III. If the Crime Coverage Part is selected above, Subsection III.A. is amended to add the following:

This Coverage Part does not cover any direct or indirect loss based upon, arising out of or attributable to any:

1. disclosure or loss of **Personal Information** in the care, custody or control of any **Insured**, or failure to disclose the loss of **Personal Information** in violation of any law or regulation;
2. disclosure or loss of corporate information in the care, custody or control of any **Insured** that is specifically designated as confidential or is protected under a nondisclosure agreement or similar contract;
3. access to, failure to prevent access to, use of, or failure to prevent use of the **Insured's** computer systems including, hardware and software, and the electronic data stored thereon, as well as associated input and output devices, data storage devices, networking equipment, components, firmware and electronic backup facilities, including systems accessible through the Internet, intranets, extranets or virtual private networks; or
4. introduction or transmission of unauthorized, corrupting, or harmful software code, including but not limited to computer viruses, Trojan horses, keystroke loggers, cookies, spyware, adware, worms, and logic bombs;

All other terms, conditions, provisions and exclusions of this policy remain the same.



New York Free Trade Zone Notice

NOTICE: THESE POLICY FORMS AND THE APPLICABLE RATES ARE EXEMPT FROM THE FILING REQUIREMENTS OF THE NEW YORK INSURANCE LAW AND REGULATIONS. HOWEVER, THE FORMS AND RATES MUST MEET THE MINIMUM STANDARDS OF THE NEW YORK INSURANCE LAW AND REGULATIONS.



NYFTZ Class: Class 2 Risk
Class Code: 14177